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NOTICE OF THE ANNUAL GENERAL AND SPECIAL MEETING OF SHAREHOLDERS

NOTICE IS HEREBY GIVEN that Yangaroo Inc. (the “**Corporation**”) is conducting a virtual only shareholders’ meeting (the “**Meeting**”) on June 25, 2026, at 4pm EDT. Registered shareholders and duly appointed proxyholders (as described in this management information circular dated May 11, 2026 [the “**Circular**”]) can attend the Meeting online at <http://www.meetnow.global/MGVV9CD> to participate, vote, or submit questions during the Meeting’s live webcast. The Meeting will be held for the following purposes, as further described in the accompanying Circular:

1. To receive and consider the audited financial statements of the Corporation for the year ended December 31, 2025 and 2024, together with the report of the auditors thereon;
2. to elect three (3) directors;
3. to appoint McGovern Hurley LLP as auditors of the Corporation and to authorize the directors to fix the auditor's remuneration;
4. to consider, and if deemed advisable, pass with or without variation, a majority of the minority vote resolution to approve the amended and restated Omnibus Incentive Plan, as more particularly described in the Circular; and
5. to transact such other business as may properly come before the Meeting or any adjournment or adjournments thereof.

The Circular, which accompanies this notice (“**Notice**”) or can be obtained as described below, contains details of the matters to be dealt with at the Meeting. A form of proxy accompanies this Notice. Shareholders are referred to the Circular for more detailed information with respect to matters to be considered at the Meeting and for the full text of the resolutions, beginning on page 21 of the Circular.

INFORMATION ABOUT THE MEETING

The Meeting will be held in a virtual meeting format only. Registered Shareholders and duly appointed proxyholders will be able to participate in the Meeting in real time through a web-based platform. You may attend the Meeting by joining the live webcast online at <http://www.meetnow.global/MGVV9CD>. You should allow sufficient time to join the Meeting to ensure compatibility and complete the related procedures. Information on how to attend and participate at the Meeting is included in the Circular.

RECORD DATE: The record date (the “**Record Date**”) for determination of shareholders entitled to receive notice of and to vote on the matters before the Meeting is the close of business on May 11, 2026. Only the registered shareholders (the “**Registered Shareholders**”) whose names have been entered in the register of holders of common shares of the Corporation on the close of business on the Record Date are entitled to receive notice of and to vote on the matters before the Meeting. Each Registered Shareholder will be entitled to one vote for each Share.

NOTICE AND ACCESS: The Corporation has elected to use the notice-and-access provisions under National Instrument 54-101 and National Instrument 51-102 (“**Notice-and-Access Provisions**”) for this Meeting. Notice-and-Access Provisions are a set of rules developed by the Canadian Securities Administrators that reduce the volume of materials that must be physically mailed to the Shareholders by allowing the Corporation to post the Circular and any additional materials online. Shareholders will still receive this Notice of Meeting and a form of proxy and may choose to receive a hard copy of the Circular. The Corporation will not use procedures known as “stratification” in relation to the use of Notice-and-Access Provisions. Stratification occurs when a reporting issuer using the Notice-and-Access Provisions provides a paper copy of the information circular to some shareholders with the notice package. In relation to the Meeting, all Shareholders will receive the required documentation under the Notice-and-Access Provisions, which will not include a paper copy of the Circular.



Shareholders with questions about notice and access can contact Computershare Investor Services Inc. toll free at 1-866-964-0492 or by going to www.computershare.com/noticeandaccess.

WEBSITES WHERE MEETING MATERIALS ARE POSTED: The Meeting Materials can be viewed online under the Corporation's profile at www.sedarplus.ca or website at: <https://yangaroo.com/investor-relations/>

HOW TO OBTAIN PAPER COPIES OF THE MEETING MATERIALS: Requests for paper copies must be received at least 10 business days in advance of the proxy deposit date and time set out in the accompanying proxy or voting instruction form in order to receive the applicable Meeting materials in advance of the proxy deposit date and Meeting. Shareholders who wish to receive paper copies of the applicable Meeting materials may request copies from the Corporation by calling toll free at 1-855-534-0607. Meeting materials will be sent to such shareholders within three business days of their request if such requests are made before the Meeting. The Corporation has determined that those shareholders with existing instructions on their account to receive a paper copy of the Corporation's meeting materials will receive paper copies of the applicable Meeting Materials with this notification. Shareholders may revoke their existing instructions by contacting the service provider who services their account. Shareholders may request paper copies of the applicable Meeting materials be sent to them by postal delivery at no cost to them. Requests may be made up to one year from the date the Circular was filed on www.sedarplus.ca.

METHODS OF VOTING:

Registered Shareholders. You are a Registered Shareholder if your name appears on a share certificate or a Direct Registration System statement confirming your holdings. If you are a Registered Shareholder, you have received a "Form of Proxy" for this Meeting. A Proxy can be submitted to Computershare either in person, by mail or courier, to 320 Bay Street, 14th Floor Toronto, Ontario M5H 4A6, or via the internet at www.investorvote.com. The Proxy must be deposited with Computershare by no later than 4pm EDT on June 23rd, 2026, or if the meeting is adjourned or postponed, not less than 48 hours (excluding Saturdays, Sundays and statutory holidays) before the commencement of such adjourned or postponed meeting. If a Registered Shareholder who has submitted a Proxy attends the Meeting via the webcast and has accepted the terms and conditions when entering the Meeting online, any votes cast by such Registered Shareholder on a ballot will be counted and the submitted Proxy will be disregarded.

Non-Registered Shareholders. You are a non-registered shareholder ("Non-Registered Shareholder") if your common shares of the Corporation are held through an intermediary (broker, trustee or other financial institution). If you are a Non-Registered Shareholder, you have received a "Voting Instruction Form" for this Meeting. Please make sure to follow instructions on your Voting Instruction Form to be able to attend and vote at this Meeting, which must be returned **prior to 4pm (EDT) on Monday, June 22nd, 2026** or if the Meeting is adjourned, by no later than 72 hours (excluding Saturdays, Sundays and holidays) before any adjourned meeting.

DATED at Toronto, Ontario, this 11th day of May, 2026.

BY ORDER OF THE BOARD OF DIRECTORS

(Signed) "Grant Schuettrumpf"
President and Chief Executive Officer



YANGAROO INC.
Management Information Circular

SOLICITATION OF PROXIES

This Circular is furnished in connection with the solicitation by the management of the Corporation of proxies for use at the Meeting, be held at 4pm EDT on June 25, 2026, and at any adjournment thereof, for the purposes set forth in the Notice of Meeting (the “**Notice**”). The solicitation will be primarily by mail, but directors, officers, employees or representatives of the Corporation may also solicit proxies personally or by telephone. All costs of solicitation will be borne by the Corporation. The information contained herein is given as at May 11th, 2026, unless otherwise indicated.

The record date (the “**Record Date**”) for determination of shareholders entitled to receive notice of and to vote at the Meeting is the close of business on May 11, 2026. Only the registered shareholders whose names have been entered in the register of holders of common shares of the Corporation (the “**Common Shares**”) on the close of business on the Record Date are entitled to receive notice of and to vote at the Meeting. Each shareholder will be entitled to one vote for each Share.

All dollar amounts in this Circular are in **United States dollars (“USD”)**, except where otherwise indicated.

ATTENDING THE MEETING ONLINE

The Meeting will be held in a virtual meeting format only. Shareholders and duly appointed proxy holders will be able to participate in the Meeting in real time through a web-based platform. You may attend the Meeting by joining the live webcast online at <http://www.meetnow.global/MGVV9CD>.

Attending and voting at the Meeting will only be available for Registered Shareholders and duly appointed proxyholders. Registered Shareholders and duly appointed proxyholders can participate in the Meeting by clicking “**Shareholder**” and entering a control number (“**Control Number**”) or an invite code (“**Invite Code**”) before the start of the Meeting.

- **Registered Shareholders:** the 15-digit Control Number is located on the Form of Proxy or in the email notification you received.
- **Duly Appointed Proxyholders:** Computershare Investor Services Inc. (“**Computershare**”) will provide the proxyholder with an Invite Code after the voting deadline has passed.

Non-Registered Shareholders who have not appointed themselves as proxyholders to participate and vote at the Meeting may login as a guest, by clicking on “**Guest**” and complete the online form; however, they will not be able to vote or submit questions.

Shareholders who wish to appoint a third-party proxyholder to represent them at the virtual Meeting must submit their Proxy or Voting Instruction Form (as applicable) prior to registering their proxyholder. Registering the proxyholder is an additional step once a Shareholder has submitted their Proxy or Voting Instruction Form. Failure to register a duly appointed proxyholder will result in the proxyholder not receiving an Invite Code to participate in the meeting.

The virtual meeting platform is fully supported across most commonly used web browsers (note: **Internet Explorer** is not a supported browser). We encourage you to access the Meeting prior to the start time. It is important that you are connected to the internet at all times during the Meeting in order to vote when balloting commences.



APPOINTMENT OF PROXIES

Shareholders who wish to appoint a third-party proxyholder to represent them at the Meeting must submit their Proxy or Voting Instruction Form (as applicable) prior to registering their proxyholder. Registering the proxyholder is an additional step once a Shareholder has submitted their Proxy or Voting Instruction Form, as applicable. Failure to register a duly appointed proxyholder will result in the proxyholder not receiving an Invite Code to participate in the meeting.

To register a proxyholder, Shareholders MUST visit <http://www.computershare.com/yangaroo> by June 23, 2026 at 4 pm EDT and provide Computershare with their proxyholder's contact information, so that Computershare may provide the proxyholder with an Invite Code via email. **Without an Invite Code, proxyholders will not be able to attend and vote at the Meeting.**

PARTICIPATING IN THE MEETING

The meeting will only be hosted online only by way of a live webcast. Shareholders will not be able to attend the meeting in person. A summary of the information Shareholders will need to attend the virtual Meeting is provided below.

- **Registered Shareholders and duly appointed proxyholders:** Only those who have a 15-digit control number, along with duly appointed proxyholders who were assigned an Invite Code by Computershare, will be able to vote and submit questions during the Meeting. See section entitled "Attending the Meeting Online" for additional information.
- **United States Beneficial Shareholders:** To attend and vote at the Meeting, you must first obtain a valid Legal Proxy from your broker, bank or other agent and then register in advance to attend the meeting. Follow the instructions from your broker or bank included with the Proxy materials or contact your broker or bank to request a Legal Form of Proxy. After first obtaining a valid Legal Proxy from your broker, bank or other agent, you must submit a copy of your Legal Proxy to Computershare in order to register to attend the meeting. Requests for registration should be sent:

By mail to: COMPUTERSHARE
320 BAY STREET, 14TH FLOOR
TORONTO, ON M5H 4A6
By email at: USLegalProxy@computershare.com

Requests for registration must be labeled as "Legal Proxy" and be received no later than June 23, 2026 at 4pm EDT. You will receive a confirmation of your registration by email after we receive your registration materials. You may attend the Meeting and vote your shares at <http://www.meetnow.global/MGVV9CD> during the Meeting. Please note that you are required to register your appointment at <http://www.computershare.com/yangaroo>.

VOTING AT THE MEETING

A Registered Shareholder (or a Non-Registered Shareholder) who has appointed themselves or appointed a third-party proxyholder to represent them at the Meeting, will appear on a list of proxyholders prepared by Computershare, who is appointed to review and tabulate proxies for this Meeting. To be able to vote their shares at the Meeting, each Registered Shareholder or proxyholder will be required to enter their control number or Invite Code provided by Computershare at <http://www.meetnow.global/MGVV9CD> prior to the start of the Meeting.

Shareholders who wish to appoint a third-party proxyholder to represent them at the Meeting may do so at <http://www.computershare.com/yangaroo> after submitting their voting instruction form in order to receive an Invite Code (please see the information under the headings "Appointment of proxies" below for details).



VOTING INSTRUCTIONS

Registered Shareholders

Registered Shareholders whose names are shown on the books or records of the Corporation as owning common shares of the Corporation (“**Common Shares**”), can vote their Common Shares by completing and returning the form of proxy included with the Circular, as indicated below.

A Proxy can be submitted to Computershare either in person, by mail or courier, to 320 Bay Street, 14th Floor Toronto, Ontario M5H 4A6, or via the internet at www.investorvote.com. The Proxy must be deposited with Computershare by no later than 4pm EDT on June 23rd, 2026, or if the meeting is adjourned or postponed, not less than 48 hours (excluding Saturdays, Sundays and statutory holidays) before the commencement of such adjourned or postponed meeting. If a Shareholder who has submitted a Proxy attends the meeting via the webcast and has accepted the terms and conditions when entering the Meeting online, any votes cast by such Shareholder on a ballot will be counted and the submitted Proxy will be disregarded.

Non-Registered Shareholders

In the Circular and the enclosed form of proxy and Notice, all references to shareholders are to Registered Shareholders of Common Shares. Only Registered Shareholders of Common Shares, or the persons they appoint as their proxies, are permitted to vote as indicated above. Common Shares beneficially owned by a holder (a “**Non-Registered Shareholder**” or “**Beneficial Owner**”) are registered either:

- in the name of an intermediary (an “**Intermediary**”) that the Non-Registered Shareholder deals with in respect of the Common Shares, such as, among others, banks, trust companies, securities dealers or brokers and trustees or administrators of self-administered RRSPs, RRIFs, RESPs and similar plans; or
- in the name of a clearing agency (such as The Canadian Depository for Securities Limited) of which the Intermediary is a participant.

There are two kinds of Non-Registered Shareholders, those who object to their name being made known to the Corporation, referred to as objecting beneficial owners (“**OBOs**”), and those who do not object to being known by the Corporation, referred to as non-objecting beneficial owners (“**NOBOs**”). In accordance with the requirements as set out in National Instrument 54-101 Communications with Beneficial Owners of Securities of a Reporting Issuer of the Canadian Securities Administrators (“**NI 54-101**”), the Corporation has distributed copies (utilizing the Notice-and-Access Provisions) of the Notice of Meeting, this Circular, the form of proxy and the supplemental mailing list return card (collectively, the “**Meeting Materials**”) to the clearing agencies and Intermediaries for onward distribution to Beneficial Owners, via Broadridge Canada in Canada and Broadridge US in the United States.

*Non-Objecting Beneficial Owners (“**NOBOs**”)*

Under NI 54-101, issuers may request and obtain a list of their NOBOs from Intermediaries through their transfer agent, namely Computershare Trust Company of Canada (“**Computershare**”) in this case. We may use this NOBO list for the distribution of Meeting Materials to NOBOs. We have decided not to take advantage of the provisions of NI 54-101 that permit us to directly deliver the Meeting Materials to our NOBOs. As a result, NOBOs can expect to receive a scannable VIF from Broadridge. These VIFs are to be completed and returned to Broadridge in the envelope provided for that purpose. In addition, Broadridge provides for both telephone voting and internet voting as described in the VIF, which contains complete instructions. Broadridge will tabulate the results of the VIFs received from NOBOs and will provide appropriate instructions to Computershare prior to the Meeting with respect to the shares represented by the VIFs it receives.



Objecting Beneficial Owners (“OBOs”)

Intermediaries are required to forward Meeting Materials to OBOs *unless an OBO has waived the right to receive them*. Generally, OBOs who have not waived the right to receive Meeting Materials will either:

- (a) be given a proxy who has already been signed by the Intermediary (typically by a facsimile, stamped signature) and is restricted as to the number of Common Shares beneficially owned by the OBO but which is otherwise not completed. This form of proxy need not be signed by the OBO. In this case, the OBO who wishes to submit a proxy should otherwise properly complete the form of proxy and deposit it with the Transfer Agent, by mail addressed to Computershare, Attention: Proxy Department, 100 University Ave., 8th Floor, Toronto, ON M5J 2Y1, as applicable, or with the Chairman of the Corporation; or
- (b) is given a voting instruction form (“VIF”) which must be completed and signed by the OBO in accordance with the directions on the VIF (which may in some cases permit the completion of VIF by telephone, internet or facsimile).

The purpose of these procedures is to permit Non-Registered Holders to direct the voting of the Common Shares they beneficially own.

REVOCATION OF PROXIES

A Registered Shareholder who has given a proxy has the power to revoke it as to any matter on which a vote shall not already have been cast pursuant to the authority conferred by such proxy and may do so (1) by delivering another properly executed proxy bearing a later date and depositing it as aforesaid, including within the prescribed time limits noted above; (2) by depositing an instrument in writing revoking the proxy executed by the shareholder or by the shareholder's attorney authorized in writing (i) at the registered office of the Corporation, 360 Dufferin Street, Suite 203, Toronto, ON M6K 1Z8 at any time up to and including the last business day preceding the day of the Meeting, or any adjournment thereof, at which the proxy is to be used, or (ii) with the Chairman of the Meeting, prior to its commencement, on the day of the Meeting or any adjournment thereof; (3) by attending the Meeting in person (virtually as indicated in this Circular) and so requesting; or (4) in any other manner permitted by law. A Non-Registered Holder may revoke a proxy or a waiver of the right to receive Meeting Materials and to vote given to an Intermediary at any time by written notice to the Intermediary, except that an Intermediary is not required to act on a revocation of a proxy or of a waiver of the right to receive Meeting Materials and to vote that is not received by the Intermediary at least seven days prior to the Meeting.

VOTING AND DISCRETION OF PROXIES

On any ballot that may be called for, the Common Shares represented by proxies in favour of the persons named by management of the Corporation will be voted for or against, or voted for or withheld from voting on, the matters identified in the proxy, in each case in accordance with the instructions of the shareholder. **In the absence of any instructions on the proxy, it is the intention of the persons named by management in the accompanying form of proxy to vote (a) FOR the election of each of management's nominees as directors; (b) FOR the appointment of management's nominee as auditor; (c) FOR the approval of the amended and restated Omnibus Incentive Plan; and (d) in accordance with management's recommendations with respect to any other matters which may properly come before the Meeting. The accompanying form of proxy confers discretionary authority upon the persons named therein with respect to amendments or variations of the matters identified in the Notice or any other matters that may properly come before the Meeting.** As at the date of this Circular, management of the Corporation knows of no such amendments, variations or other matters that may properly come before the Meeting other than the matters referred to in the Notice.



VOTING SHARES AND PRINCIPAL SHAREHOLDERS

As at the date of this Circular, the authorized capital of the Corporation consisted of an unlimited number of Common Shares, of which 63,576,462 Common Shares were issued and outstanding.

A holder of record of Common Shares as at the close of business on May 11, 2026 (the “**Record Date**”) is entitled to one vote for each Share held by such holder. The affirmative vote of a majority of the votes cast at the Meeting is required for approval of each matter set forth in this Circular.

In accordance with the *Business Corporations Act* (Ontario), the Corporation will prepare a list of holders of Common Shares on the Record Date. Each holder of Common Shares named in the list will be entitled to vote the Common Shares shown opposite such holder’s name on the list at the Meeting.

As at the date of this Circular, to the knowledge of the directors and executive officers of the Corporation, no person beneficially owns, directly or indirectly, or exercises control or direction over more than 10% of the Common Shares other than: (a) Ingalls and Snyder LLC which holds 15,541,497 shares as agent on behalf of its clients (as reported on www.SEDI.ca), and one such client, being; (b) H. Shepard Boone, an incumbent director and nominee for re-election to the board of directors of the Corporation, who also beneficially holds 10% or greater of the Common Shares individually or in concert with third parties 10,119,000 as reported on www.SEDI.ca).



CORPORATE GOVERNANCE DISCLOSURE

Introduction

The Board believes that effective corporate governance contributes to improved corporate performance and enhanced shareholder value. The Board has reviewed the corporate governance best practices identified in National Policy 58-201 - *Corporate Governance Guidelines* and National Instrument 58-101 - *Disclosure of Corporate Governance Practices* (collectively, the “CSA Guidelines”). The Board is committed to ensuring that the Corporation follows best practices. The Corporation's specific disclosure relative to these guidelines is set out below.

Board of Directors

The responsibility of the Board is to supervise the management of the business and affairs of the Corporation in accordance with the best interests of the Corporation and all of its shareholders. In discharging its responsibility, the Board reviews the performance of the President and CEO, the CFO and CTO and oversees and reviews the development and implementation of the following significant corporate plans and initiatives:

- the Corporation's strategic planning and budgeting process;
- succession planning, including appointing, training and monitoring senior management; and
- the Corporation's public communications policies and continuous disclosure record.

The Board meets at least four times a year and more frequently if required. In addition, the Board took various actions by written resolution.

Board Composition

The Board was composed of three (3) directors for the fiscal year. All directors are elected annually. The directors of the Corporation were Grant Schuettrumpf, Philip Benson and H. Shepard Boone.

Messrs. Benson and Boone are considered “independent directors” pursuant to *National Instrument 52-110 – Audit Committees (“NI 52-110”)*. In determining whether a director is independent, the Board considers the specific circumstances of a director and the nature of any relationship between the director and the Corporation. As Mr. Schuettrumpf is an executive officer of the Corporation, he is not considered “independent”.

Directorships

No directors of the Corporation are also directors of other reporting issuers, other than as indicated below:

Name	Reporting Issuer	Trading Symbol
Philip Benson	Forward Water Technologies Corp.	FWTC.V

Ethical Business Conduct

The Corporation has implemented a written Code of Ethics (the “Code”). All directors, officers, employees and consultants of the Corporation are expected to be familiar with the Code and to adhere to those principles and procedures set forth in the Code that apply to them. The Board is ultimately responsible for the application of the Code to the affairs of the Corporation.

The directors are also required to abide by all relevant regulatory rules and regulations and the policies of the TSX Venture Exchange. Directors and officers are required to declare any conflicts of interest or any other situation that could represent a potential violation of any applicable rules and regulations. Directors are also encouraged to exercise their independent judgment. If a director has a material interest in any transaction or agreement that the Company proposes to enter into, such director is expected to disclose such interest to the Board in compliance with the applicable laws, rules and policies which govern conflicts of interest in connection with such transaction or agreement. Further,



any director who has a material interest in any proposed transaction or agreement will be excluded from the portion of the Board meeting concerning such matters and will be further precluded from voting on such matters.

Nomination of Directors

Currently, the Board does not have a nominating committee. The Board as a whole identifies and recommends for nomination candidates for election as directors. While no formal nomination procedures are in place, the Board does review the experience and performance of nominees for election to the Board. The Board looks at the education and experience of prospective candidates, with attention paid to those areas of expertise that could complement and enhance current management. The Board also assesses any potential conflicts, independence or time commitment concerns that the candidate may present.

Compensation

The Corporation has a Compensation Committee. Generally, the Compensation Committee assists the Board in carrying out its responsibilities relating to personnel matters, including performance, compensation and succession. The Compensation Committee develops tailored objectives for members of management such as the President and CEO, CTO and CFO, based on broader Company goals, as well as for other individuals, reviewing and making recommendations to the Board with respect to employee and contractor compensation arrangements including stock options, non-option incentives (such as restricted share units) and management succession planning. During the year ended December 31, 2025, and at this time, given the size of the Board of the Corporation, all independent directors comprise the Compensation Committee, with the non-independent (executive) member excluded from the Compensation Committee.

Even if management is invited to a meeting of the Compensation Committee, all or a part of each meeting is held without management present, including for the purpose of specifically discussing the proposed allocation of stock options and non-option incentives to the Chairman and individual Board members, incentive bonus plans and salary proposals.

Board Committees

The Board does not have any standing committees other than the Audit Committee and the Compensation Committee. Given the size of the Corporation, the Board has not established a Corporate Governance Committee or other standing committees, however in the event of an increase in the size of the Board in the future, the Board will consider forming a Corporate Governance Committee. In addition, the Board may in the future form ad hoc committees, as necessary.

Assessments

The Board as a whole is responsible for assessing the effectiveness of the Board, the individual directors and its committees. The Board has not implemented a formal process for assessing its effectiveness. As a result of the Corporation's size, the Board has considered a formal assessment process to be unnecessary at this time but will continue to consider this in the future.

Shareholder Feedback

The Board believes that management should speak for the Corporation in its communications with shareholders and others in the investment community and that the Board should be satisfied that appropriate investor relations programs and procedures are in place. Management communicates regularly with shareholders and others in the investment community to receive and respond to shareholder feedback.

The Board regularly reviews the Corporation's major communications with shareholders and the public, including management discussion and analysis, financial statements and management information circulars.



Expectations of Management

The Board believes that it is appropriate for management to be responsible for the development of long-term strategies for the Corporation. Meetings of the Board are held, as required, to specifically review and deal with long-term strategies of the Corporation as presented by senior members of management.

The Board appreciates the value of having selected senior officers attend Board meetings to provide information and opinions to assist the directors in their deliberations. The Chair arranges for the attendance of senior officers at board meetings in consultation with the President and CEO.

AUDIT COMMITTEE DISCLOSURE

NI 52-110 requires the Corporation, as a venture issuer, to disclose annually in the Circular certain information concerning the constitution of its audit committee (the “**Audit Committee**”) and its relationship with its independent auditor, as set forth in the following.

Charter

A copy of the charter of the Audit Committee, which governs the Audit Committee, is attached to this Circular as Schedule “A”. The Audit Committee assists the Board in carrying out its responsibilities relating to corporate accounting and financial reporting practices. The duties and responsibilities of the Committee include the following:

- reviewing for recommendation to the Board for its approval the principal documents comprising the Corporation's continuous disclosure record, including interim and annual financial statements and management's discussion and analysis;
- recommending to the Board a firm of independent auditors for appointment by the shareholders and reporting to the Board on the fees and expenses of such auditors. The Committee has the authority and responsibility to select, evaluate and if necessary replace the independent auditor. The Committee has the authority to approve all audit engagement fees and terms and the Committee, or a member of the Committee, must review and pre-approve any non-audit services provided to the Corporation by the Corporation's independent auditor and consider the impact on the independence of the auditor;
- reviewing periodic reports from the CFO;
- discussing with management and the independent auditor, as appropriate, any audit problems or difficulties and management's response; and
- establishing procedures for the receipt, retention and treatment of complaints regarding accounting, internal accounting controls or auditing matters.

Composition

During the year ended December 31, 2025, Messrs. Benson, Schuettrumpf and Boone were members of the Audit Committee. Pursuant to NI 52-110, as a venture issuer, the Corporation is required to have at least 3 members of its Audit Committee, with a majority being independent. In the opinion of the Corporation, all of the foregoing members of the Audit Committee were both “financially literate” pursuant to NI 52-110 and the members other than Mr. Schuettrumpf were “independent” pursuant to NI 52-110.

Relevant Education and Experience

All the members of the Audit Committee have the education and/or practical experience allowing each to understand and evaluate financial statements presenting a level of complexity of accounting issues that are generally comparable to the complexity of issues that can reasonably be expected to be raised by the Corporation’s financial statements.



Philip Benson

Philip Benson is a Managing Partner at Fraser Mackenzie Merchant Capital, a Toronto based merchant bank. He has been an advisor to and investor in a broad range of technology, business service and consumer products business through his career. He has advised the Corporation since 2009 and has been instrumental in helping the Corporation raise equity and debt capital over this period.

H. Shepard Boone

H. Shepard Boone is a portfolio manager at Ingalls & Snyder LLC, a New York based investment advisor and broker-dealer. He has over 30 years of experience in debt and equity investments. Mr. Boone has been an investor in the Corporation since 2010.

Grant Schuettrumpf

Grant Schuettrumpf has been the President and Chief Executive Officer of Yangaroo since March 2021 and has over 30 years' experience in the advertising and entertainment industries having worked in Australia, NZ, UK, and the USA. Mr. Schuettrumpf has previously held senior executive positions, business development and served on committees as a service provider and technology supplier for the top six advertising agency groups, some of the world's largest brands, film studios & distributors, music distributors, broadcasters and publishers, and many production companies ensuring creative and promotional content is managed and distributed across the globe.

Audit Committee Oversight

The Committee maintains direct communication during the year with the Corporation's independent auditor and the Corporation's senior officers responsible for accounting and financial matters. The Audit Committee has reviewed and discussed with management and the independent auditors the financial statements of the Corporation as at December 31, 2025 and management's discussion and analysis. Based on that review and on the report of the independent auditor of the Corporation, the Audit Committee recommended to the Board that the Corporation's financial statements and management's discussion and analysis be approved and filed with Canadian regulatory authorities.

At no time since the commencement of the Corporation's most recently completed financial year have any recommendations by the Audit Committee respecting the nomination and/or compensation of the Company's external auditors not been adopted by the Board. The Audit Committee has recommended to the Board that the shareholders of the Corporation be requested to appoint McGovern Hurley LLP, Chartered Accountants, as the independent auditor for the year ended December 31, 2026.

Reliance on Certain Exemptions

The Corporation has not relied on the exemption contained in sections 2.4 or Part 8 of NI 52-110. Section 2.4 provides an exemption from the requirement that the Audit Committee must pre-approve all non-audit services to be provided by the auditor, where the total amount of fees related to the non-audit services are not expected to exceed 5% of the total fees payable to the auditor in the fiscal year in which the non-audit services were provided. Section 8 permits a company to apply to a securities regulatory authority for an exemption from the requirements of NI 52-110, in whole or in part.

Pre-Approval Policies and Procedures

Pursuant to the terms of the Audit Committee Charter, the Audit Committee shall pre-approve all non-audit services to be provided to the Corporation by its external auditor, subject to certain exceptions.

**External Audit Service Fees (by Category)**

For the years ended December 31, 2025 and 2024 respectively, the fees accrued or paid by the Corporation for audit work and other services performed by McGovern Hurley LLP for the year ended December 31, 2025 and Baker Tilly WM LLP for the year ended December 31, 2024 were as follows:

	2025	2024
Audit services	\$90,000	\$85,000
Audit-related services	Nil	Nil
Tax services	Nil	Nil
Other services	Nil	Nil
	\$90,000	\$85,000

Audit service fees

Audit service fees were paid for professional services rendered by the auditors for audit of the financial statements including the services provided in connection with statutory and regulatory filings.

Audit-related services fees

No audit-related services were provided.

Tax service fees

No tax related services were provided.

Other service fees

No other services were provided.

Pursuant to the Audit Committee charter, the Audit Committee approved in advance all auditing services of the external auditors and related fees and terms and all non-audit service mandates including related fees and terms, to the extent permitted by applicable laws, regulations and policies. The Audit Committee may delegate to one or more members of the Audit Committee the authority to pre-approve non-audit services to be provided by the external auditors provided that any such approvals made by the designated individuals will be reported to the full Audit Committee at its next scheduled meeting.

Venture Issuer Exemptions

The Corporation is relying upon the exemption in section 6.1 of NI 52-110.



DIRECTOR AND EXECUTIVE COMPENSATION

The following disclosure of compensation earned by certain executive officers and directors of the Corporation in their respective roles with the Corporation is made in accordance with the requirements of *National Instrument 51-102 – Continuous Disclosure Obligations* (“NI 51-102”) and *Form 51-102F6V – Statement of Executive Compensation – Venture Issuers*. Disclosure is required to be made in relation to “**Named Executive Officers**” or “**NEOs**”, being those individuals who, at any time during the most recently completed financial year, served as the President and Chief Executive Officer (“**CEO**”), Chief Financial Officer (“**CFO**”) and the next most highly compensated executive officer, other than the Chief Executive Officer and Chief Financial Officer, whose total compensation was, individually, more than CAD \$150,000.

Compensation Discussion and Analysis

Executive Officer Compensation

The Corporation seeks to establish compensation plans for NEOs (and other executives) that will attract, retain, and motivate qualified executives to join the Corporation and work diligently to attain the Corporation’s objectives. The Corporation’s Board has a Compensation Committee that is comprised of 2 independent directors that assists the Board in carrying out its responsibilities relating to personnel matters, including performance, compensation and succession. Compensation plans for NEOs are developed by the President and CEO and submitted to the Compensation Committee for review and approval before being implemented.

The Corporation offers NEOs compensation packages that included a combination of salary, bonus, stock options, non-option incentives and a group health insurance plan. Salary levels are determined so as to be competitive with similar organizations in the Corporation’s region and to attract and retain NEO.

Annual Incentives

Annual incentives in the form of bonuses are offered to motivate NEOs to achieve specific corporate goals for the year that include revenues, costs, profitability, technology development and cash flow. Bonuses can be comprised of cash, stock options and non-option incentive securities such as restricted share units. The cash bonus portion NEOs are eligible to earn is determined as a percentage of their salary. The achievement of financial goals is determined by comparing actual results to the Corporation’s budget for the year. The amount of bonus earned is determined by the degree to which the goal was met, with higher amounts being earned for over-achievement.

Long Term Incentives

Longer-term incentive compensation in the form of stock options and non-option incentive securities is offered to align NEO interests with those of the Corporation’s shareholders by providing an opportunity for NEOs to benefit from growth in the value of the Corporation’s shares over a period of several years. Security-based compensation awards have also encouraged continued service to the Corporation. Compensation security grants for NEOs have been recommended to the Board by the President and CEO and by the Compensation Committee. The Board approves all grants, setting their exercise price, vesting period and expiry, as applicable. The number of incentive securities previously held by a NEO is considered when new grants are proposed. The officers of the Corporation did not receive any awards of stock options or non-option incentive securities during the year ended December 31, 2025, except for 500,000 restricted share units granted to Peter Kanniah, Chief Financial Officer, and 2,000,000 restricted share units and 500,000 stock options were granted to Grant Schuetrumpf. The 500,00 stock options granted to Grant Schuetrumpf were exercised during the year ended December 31, 2025.

A stock option plan was established to provide an incentive to the directors, officers, employees, consultants and other personnel of the Corporation and any of its subsidiaries to achieve the longer-term objectives of the Corporation, to



give suitable recognition to the ability and industry of such persons who contribute materially to the success of the Corporation and to attract and retain in the employ of the Corporation, or any of its subsidiaries, persons of experience and ability by providing them with the opportunity to acquire an increased proprietary interest in the Corporation.

The evolution of the employment marketplace in the opinion of the Board have resulted in new, diversified, and innovative compensation practices involving several alternative forms of equity-based incentives. As such, the Board favoured the adoption and approval of a long-term omnibus incentive plan permitting the grant of stock options (the “**Options**”) and restricted share units (“**RSUs**”), deferred share units (“**DSUs**”), performance share units (“**PSUs**”) and share appreciation rights (“**SARs**”, together with RSUs, DSUs and PSUs referred to collectively as the “**Non-Option Awards**”). The Non-Option Awards may be settled, if and when vested, in Common Shares of the Corporation or the cash equivalent, at the election of the Corporation.

At the meeting of shareholders of the Corporation held on June 28, 2023, the disinterested shareholders of the Company voted in favour of an amended and restated omnibus incentive plan (the “**Plan**”). Amendments in the Plan were made primarily to replenish and increase the number of Common Shares available for issuance, and in particular pursuant to Non-Option Awards, versus Options. During the year ended December 31, 2024, the total number of Common Shares available for issuance under the Plan remained at 14%, however the number of Common Shares issuable under the Non-Option Awards was increased from approximately 5% to 7% (and the number of Common Shares issuable under the Options was reduced from approximately 9% to 7%), such that 4,370,600 Common Shares are issuable pursuant to the Options (together with existing options under any predecessor plans); and b) of 4,370,700 Common Shares are issuable pursuant to the Non-Option Awards. During the year ended December 31, 2025, the total number of Common Shares available for issuance under the Plan remained at 14%, however the number of Common Shares issuable under the Non-Option Awards was increased from approximately 7% to 10% (and the number of Common Shares issuable under the Options was reduced from approximately 7% to 4%), such that 2,622,360 Common Shares are issuable pursuant to the Options (together with existing options under any predecessor plans); and b) of 6,118,840 Common Shares are issuable pursuant to the Non-Option Awards. At the Meeting, the shareholders of the Corporation will be asked to vote in favour of further amendments to the Plan, as described in this Circular.

The ability to grant a variety of awards under the Omnibus Incentive Plan (including restricted share units, performance share units, deferred share units and share appreciation rights) allows for greater flexibility for the Corporation in the Board’s view.

Shares for Services Arrangement

The Corporation also established a shares for services arrangement (the “**Shares for Services Arrangement**”) with Mr. Schuettrumpf, President and CEO. This Shares for Services Arrangement is part of the Corporation’s executive compensation program and is separate from, and not granted under, the Omnibus Incentive Plan. Pursuant to the terms of the Agreement, the Corporation agreed to pay to Mr. Schuettrumpf the lesser of USD \$2,500 per month and CAD \$5,000 per month (less applicable withholding taxes) (the “**Monthly Share Compensation Value**”) in addition to Mr. Schuettrumpf’s existing salary, by way of share issuance. The Shares for Services Arrangement provides for the issuance of common shares of the Company (the “**Shares**”) each month over a period of two (2) years effective as of January 1, 2025 to Mr. Schuettrumpf, the number of Shares to be calculated using the Market Price (as defined by the policies of the TSX Venture Exchange) on the last trading day of each month, except with respect to the month of January 2025, which was calculated using the Discounted Market Price (as defined in the policies of the TSX Venture Exchange) as at March 10, 2025 (the date upon which such issuance was announced). As of the record date the Company have issued a cumulative total of 639,322 Shares for the months of January 2025 through March 2026 under the Shares for Services Arrangement.



Director Compensation

The Corporation pays director compensation to the independent directors only. The independent directors are compensated with an annual cash fee and with long-term incentives in the form of stock options or non-option incentive securities. See above section entitled *Executive Compensation – Long Term Incentives* for more information.

Summary Compensation Tables

The following tables sets forth the summary information concerning compensation, both equity and non-equity, earned by the Corporation's President and CEO, CFO, and CTO and the directors of the Corporation during the most recently completed financial years ended on or after December 31, 2025.

Director and named executive officer compensation, excluding compensation securities

Table of compensation excluding compensation securities

The following tables sets forth the summary information concerning compensation excluding compensation securities earned by the Corporation's CEO, CFO and CTO, and the directors of the Corporation during the two (2) most recently completed financial years ended on or after December 31, 2025.

Name and position	Year	Salary, consulting fee, retainer or commission (\$)	Bonus (\$)	Committee or meetings fees (\$)	Value of perquisites (\$)	Value of all other compensation ⁽¹⁾ (\$)	Total compensation (\$)
Grant Schuettrumpf President and CEO	2025	275,000	Nil	Nil	Nil	14,355	289,355
	2024	275,000	Nil	Nil	Nil	12,712	287,712
Peter Kanniah Chief Financial Officer as of January 2, 2025 ⁽²⁾	2025	133,208	Nil	Nil	Nil	6,031	138,382
	2024	Nil	Nil	Nil	Nil	Nil	Nil
Frank Guo Chief Financial Officer as of March 13, 2024 until November 30, 2024 ^{(2) (3)}	2025	Nil	Nil	Nil	Nil	Nil	Nil
	2024	111,358	Nil	Nil	Nil	\$3,766	115,124



Name and position	Year	Salary, consulting fee, retainer or commission (\$)	Bonus (\$)	Committee or meetings fees (\$)	Value of perquisites (\$)	Value of all other compensation ⁽¹⁾ (\$)	Total compensation (\$)
Richard Klosa Chief Technology Officer ⁽²⁾	2025	158,456	Nil	Nil	Nil	6,607	163,997
	2024	160,607	Nil	Nil	Nil	6,619	167,226
Philip Benson Director	2025	14,308	Nil	Nil	Nil	Nil	14,308
	2024	14,601	Nil	Nil	Nil	Nil	14,601
H. Shepard Boone Director	2025	17,885	Nil	Nil	Nil	Nil	17,885
	2024	18,251	Nil	Nil	Nil	Nil	18,251

- (1) All other compensation includes the value of group insurance benefits.
- (2) Peter Kanniah, Frank Guo and Richard Klosa's compensation is paid in CAD and reported in USD, converted at the exchange rates on the transaction dates. The weighted average exchange rate for 2025 was \$0.72.
- (3) Frank Guo resigned as Chief Financial Officer effective April 26, 2024 and was re-appointed as Chief Financial Officer effective July 22, 2024, during which time Grant Schuettrumpf served as interim Chief Financial Officer.

The following table sets forth the summary information concerning compensation securities earned by the Corporation's President and Chief Executive Officer ("CEO"), Chief Financial Officers ("CFO") and Chief Technology Officer ("CTO"), and the directors of the Corporation during the most recently completed financial year ended December 31, 2025.



Compensation Securities

Name and position	Type of compensation security	Number of compensation securities, number of underlying securities, and percentage of class	Date of issue of grant	Issue, conversion or exercise of price (CAD \$)	Closing price of security or underlying security on date of grant (CAD \$)	Closing price of security or underlying security at year end (CAD \$)	Expiry or Vesting date
Grant Schuettrumpf President and CEO	RSUs	1,000,000	March 10, 2025	N/A	\$0.05	\$0.05	December 31, 2026 ⁽²⁾
	RSUs	1,000,000	March 10, 2025	N/A	\$0.05	\$0.05	December 31, 2027 ⁽²⁾
	Stock Options	500,000 ⁽³⁾	March 10, 2025	\$0.0375	\$0.05	\$0.05	June 10, 2025
	Common Shares	383,135 ⁽⁴⁾	June 6/August 21/ December 1, 2025	Between \$0.037 and \$0.09	Between \$0.05 and \$0.08	\$0.05	N/A
Peter Kanniah CFO as of January 2, 2025	RSUs	500,000	January 2, 2025	N/A	\$0.05	\$0.05	January 2, 2027
Jeff Wagner CFO as of August 3, 2023 until February 16, 2024	N/A	N/A	N/A	N/A	N/A	N/A	N/A
Frank Guo CFO as of March 13, 2024 until November 30, 2024 ⁽¹⁾	RSUs	500,000	July 22, 2024	N/A	\$0.04	\$0.04	July 22, 2026 ⁽¹⁾
Richard Klosa CTO	N/A	N/A	N/A	N/A	N/A	N/A	N/A
Philip Benson Director	N/A	N/A	N/A	N/A	N/A	N/A	N/A
H. Shepard Boone Director	N/A	N/A	N/A	N/A	N/A	N/A	N/A



- (1) Frank Guo resigned as Chief Financial Officer effective April 26, 2024 and was re-appointed as Chief Financial Officer effective July 22, 2024, during which time Grant Schuettrumpf served as interim Chief Financial Officer.
- (2) Grant Schuettrumpf holds 2,000,000 RSUs, 1,000,000 of which are subject to certain performance requirements (the “KPIs”) and will vest on the later to occur of the satisfaction of such KPIs or March 7, 2026, and the remaining 1,000,000 RSUs to vest on March 7, 2027.
- (3) On June 6, 2025, Mr. Schuettrumpf exercised 500,000 stock options for 500,000 common shares of the Company with an exercise price of CAD \$0.0375 per share for total proceeds of \$13,727 USD.
- (4) Issued pursuant to a shares for services agreement between the Corporation and Mr. Schuettrumpf. Shares were issued on June 6, 2025, August 21, 2025, and December 1, 2025 at various prices between \$0.0375 and \$0.09 under the terms of the agreement.

Exercise of Compensation Securities by Directors and NEOs

The following table sets forth the summary information concerning the exercise of compensation securities by any of the Corporation’s Chief Executive Officer (“CEO”), Chief Financial Officers (“CFO”), Chief Technology Officer (“CTO”), or the directors of the Corporation during the most recently completed financial year ended December 31, 2025.

Exercise of Compensation Securities by Directors and NEOs							
Name and position	Type of compensation security	Number of underlying securities exercised	Exercise price per security (\$)	Date of exercise	Closing price per security on date of exercise CAD (\$)	Difference between exercise price and closing price on date of exercise CAD (\$)	Total value on exercise date USD (\$)
Grant Schuettrumpf President and CEO	Stock Options	500,000	\$0.0375	June 6, 2025	\$0.08	\$0.0425	\$13,727

Defined Benefit or Contribution Plans

The Corporation does not have a pension plan that provides for benefits at or in connection with retirement.

Termination and Change of Control Benefits

The Corporation reimburses its Executive Officers for all travel and other out-of-pocket expenses incurred in connection with the performance of their respective duties.



Management & Employment Agreements

The provision of services by each of the Named Executive Officers is governed by employment or management agreements with the Corporation. The following summarizes the relevant features of each agreement including any subsequent amendments:

Grant Schuetrumpf entered into an employment agreement with the Corporation dated January 1, 2021 for a one year period, with respect to his position as interim CEO, then CEO as announced on March 9, 2021, which is automatically renewable for successive one-year periods on January 1st of each year unless terminated in accordance with the terms of the agreement, as further described below. Under the terms of the employment agreement, Mr. Schuetrumpf is prohibited from competing with the Corporation for a period of 6 months following the termination of his employment with the Corporation and from soliciting employees of the Corporation for a period of 12 months following the termination of his employment. Mr. Schuetrumpf is also prohibited, during with the term of the agreement and for 24 months after the termination of his employment, from taking advantage of any business opportunities intended for the Corporation of which Mr. Schuetrumpf became aware during his role with the Corporation. The agreement may be terminated upon expiry of the term or otherwise as follows: a) termination by the Corporation for Cause (as defined in the agreement); b) by Mr. Schuetrumpf for Good Reason (each as defined in the agreement); c) by either party upon 90 days written to the other party; or d) upon a Change of Control, defined as (i) a buy-out of the Corporation whereby more than 50% in the aggregate of the ownership interests of the Corporation, inclusive of all or substantially all of the Corporation's intellectual property assets (the "IP Assets"), become beneficially owned by an entity, group or persons (the "Successor Entity") not now holding an ownership interest or (ii) the sale or other disposition of all or substantially all of the Corporation's IP Assets to an entity, group or persons not now holding an ownership interest. In the event that the agreement is terminated by Mr. Schuetrumpf for Good Reason or by the Corporation as a result of a Change Control (and in the event that the Successor Entity does not employ Mr. Schuetrumpf for at least 6 months), Mr. Schuetrumpf will continue to receive salary, a pro-rated portion of an annual bonus, and benefits for up to 12 months, or earlier if Mr. Schuetrumpf finds alternate employment. An amendment to this agreement was executed on January 1, 2025. The Corporation also established a shares for services arrangement with Mr. Schuetrumpf as described above under "Shares for Services Arrangement".

Jeff Wagner appointed as Chief Financial Officer as of August 3, 2024. The Corporation entered into an engagement agreement with a company operating as PubCo Reporting for the services of Jeff Wagner. The agreement includes non-solicitation restrictions for a period of two (2) years from the termination of the agreement. Each party was entitled to terminate the agreement upon 90 days' notice subject to certain shorter timelines in certain events, and the agreement provides for certain events that may result in the suspension of CFO services.

Frank Guo replaced Jeff Wagner as Chief Financial Officer as of March 13, 2024. The Corporation entered into an employment agreement with Mr. Guo. Under the terms of the employment agreement, Mr. Guo is prohibited from soliciting employees of the Corporation for a period of 12 months following the termination of his employment. Mr. Guo's employment contract states that Mr. Guo was entitled to resigned upon providing a minimum of three (3) weeks working notice. Mr. Guo could be terminated for just cause. In the event the employment of Mr. Guo was terminated on a without cause basis, he would receive notice of termination, pay in lieu of notice, or a combination as required under applicable laws, plus an additional two (2) weeks in consideration for a full and final release, subject to a minimum equivalent to five (5) months' base salary and continued health and dental benefits.

Peter Kanniah replaced Frank Guo as Chief Financial Officer as of January 2, 2025. The Corporation entered into an employment agreement with Mr. Kanniah. Under the terms of the employment agreement, Mr. Kanniah is prohibited from soliciting employees of the Corporation for a period of 12 months following the termination of his employment. Mr. Kanniah's employment contract states that Mr. Kanniah was entitled to resigned upon providing a minimum of



three (3) weeks working notice. Mr. Kanniah could be terminated for just cause. In the event the employment of Mr. Kanniah was terminated on a without cause basis, he would receive notice of termination, pay in lieu of notice, or a combination as required under applicable laws, plus an additional two (2) weeks in consideration for a full and final release, subject to a minimum equivalent to five (5) months' base salary and continued health and dental benefits.

Richard Klosa entered into an agreement with the Corporation on December 18, 2007 (the "Original Agreement") with respect to his services as Chief Technology Officer, which agreement was amended on January 13, 2017 (the "Amendment"). Mr. Klosa is prohibited from competing with the Corporation as well as soliciting employees or clients of the Corporation for a period of 12 months following the termination of his employment with the Corporation. The Amendment states that, in the event that Mr. Klosa's employment is terminated on a without cause basis, he will be entitled to receive a lump sum payment equal to one (1) month base salary for each full year worked (or pro-rated for any partial year) to a maximum of 24 months. He will also be entitled to receive a bonus payment to be calculated based upon the bonus received for the fiscal year prior to termination for the number of months that he is to receive pay in lieu of notice. The Corporation will also be required to make its portion of any payments required to maintain his benefits for the same notice period.

Indebtedness of Directors, Executive Officers and Others

At no time since the beginning of the Corporation's last financial year was any director, executive officer, proposed nominee for election as a director, or any of their respective associates indebted to the Corporation or any of its subsidiaries, nor was the indebtedness of any such person to another entity the subject of any guarantee, support agreement, letter of credit or similar arrangement provided by the Corporation or any of its subsidiaries.

Directors' and Officers' Liability Insurance

The Corporation maintains insurance for the benefit of its Directors and Officers against liability in their respective capacities as directors and officers. During the year ended December 31, 2025, the Corporation had Directors' and Officers' insurance in place providing \$4 million in coverage for a premium of USD \$22,406.

INTERESTS OF INFORMED PERSONS IN MATERIAL TRANSACTIONS

Except as otherwise disclosed in this Circular, no insider of the Corporation or proposed nominee for election as a director of the Corporation, nor any of their respective associates or affiliates, has had any material interest, direct or indirect, in any transaction since the commencement of the Corporation's last financial year or in any proposed transaction which has materially affected or will materially affect the Corporation or any of its subsidiaries.

Except as otherwise disclosed in this Circular, no person who has been a director or senior officer of the Corporation since the commencement of the Corporation's last financial year, nor any proposed nominee for election as a director of the Corporation, nor any of their respective associates or affiliates, has any material interest, direct or indirect, in any matter to be acted upon at the Meeting.



MATTERS TO BE VOTED UPON

1. Election of Directors

The articles of the Corporation provide that the Board shall consist of a minimum of one and a maximum of ten directors, the number of which may be fixed from time to time by special resolution or, if a special resolution empowers the directors to fix such number, by the Board. The shareholders previously fixed the Board at three (3).

THE PERSONS NAMED IN THE FORM OF PROXY FOR THE MEETING (UNLESS OTHERWISE INSTRUCTED) INTEND TO VOTE FOR the election to the Board of the nominees whose names are set forth below. Shareholders may vote for all of the nominees, some of them and withhold for others, or withhold for all of them. Each director elected will hold office until the next annual meeting or until his successor is duly elected or appointed.

The Board presently consists of three (3) directors, namely, Grant Schuettrumpf, H. Shepard Boone (Chair), and Philip Benson and, at the Meeting, each of the foregoing are proposed for re-election. Each director elected will hold office until the next annual general meeting of shareholders or until such director's successor is duly elected or appointed pursuant to the by-laws of the Corporation unless their office is earlier vacated. The *Business Corporations Act* (Ontario) allows for the Board to appoint additional directors to the Board prior to the next annual meeting provided that the number appointed does not exceed one third of the number of existing directors.

The following table and the notes thereto list certain information concerning the nominees for election as directors of the Corporation. The information as to principal occupations and the number of Common Shares beneficially owned or over which control or direction is exercised by each nominee has been furnished by the respective nominees individually.

NAME, OFFICE AND MUNICIPALITY OR RESIDENCE	DIRECTOR SINCE	Number of Common Shares Beneficially Owned, Directly or Indirectly, or over which Control of	Principal Occupation During the Past Five Years
Grant Schuettrumpf ⁽¹⁾ Director, President, CEO New York, NY	March 9, 2021	1,447,436 ⁽³⁾	President and CEO, YANGAROO
Philip Benson ⁽¹⁾⁽²⁾ Director, Toronto, Ontario	January 26, 2016	788,585 ⁽⁴⁾	Managing Partner, Fraser Mackenzie Merchant Capital since 2007
H. Shepard Boone ⁽¹⁾⁽²⁾ Director, Cos Cob, Connecticut	April 15, 2020	10,119,000 ⁽⁵⁾	Portfolio Manager, Ingalls & Snyder

1. Denotes a member of the audit committee as at the date of this Circular.
2. Denotes a member of the compensation committee as at the date of this Circular.



3. In addition to the number of shares stated in the above table, Grant Schuetrumpf holds 2,000,000 RSUs, 1,000,000 of which are subject to certain performance requirements (the “KPIs”) and will vest on the later to occur of the satisfaction of such KPIs or March 7, 2026, and the remaining 1,000,000 RSUs to vest on March 7, 2027. In addition, Mr. Schuetrumpf’s employment agreement provides for the issuance of Common Shares each month over a period of two (2) years effective as of January 1, 2025 pursuant to the policies of the TSX Venture Exchange.
4. In addition to the number of shares stated in the above table, Philip Benson holds 200,000 RSUs to vest and be settled on March 8, 2027.
5. In addition to the number of shares stated in the above table, H. Shepard Boone holds 400,000 DSUs to vest and be settled on the later of Mr. Boone’s cessation of service with the Corporation and May 8, 2027, except as provided under the Plan.

The term of office for each director will be from the date of the meeting at which he or she is elected until the next annual meeting or until his or her successor is duly elected or appointed.

Nominee Bios:

Grant Schuetrumpf

Grant Schuetrumpf has been the President and CEO of Yangaroo since March 2021 and has over 30-years’ experience in the advertising and entertainment industries having worked in Australia, NZ, UK, and the USA. Grant has previously held senior executive positions, business development and served on committees as a service provider and technology supplier for the top 6 advertising agency groups, some of the world’s largest brands, film studios & distributors, music distributors, broadcasters and publishers, and many production companies ensuring creative and promotional content is managed and distributed across the globe.

Philip Benson

Philip Benson is a Managing Partner at Fraser Mackenzie Merchant Capital, a Toronto based merchant bank. He has been an advisor to and investor in a broad range of technology, business service and consumer products business through his career. He has advised the Corporation since 2009 and has been instrumental in helping the Corporation raise equity and debt capital over this period.

H. Shepard Boone

H. Shepard Boone is a Portfolio Manager at Ingalls & Snyder LLC, a New York based investment advisor and broker-dealer. He has over 30 years of experience in debt and equity investments. Mr. Boone has been an investor in the Corporation since 2010.

PROXIES RECEIVED IN FAVOUR OF MANAGEMENT WILL BE VOTED FOR THE ELECTION OF THE ABOVE-NAMED NOMINEES, UNLESS THE SHAREHOLDER HAS SPECIFIED IN THE PROXY THAT HIS/HER SHARES ARE TO BE WITHHELD FROM VOTING IN RESPECT THEREOF. MANAGEMENT HAS NO REASON TO BELIEVE THAT ANY OF THE NOMINEES WILL BE UNABLE TO SERVE AS A DIRECTOR BUT, IF A NOMINEE IS FOR ANY REASON UNABLE TO SERVE AS A DIRECTOR, PROXIES IN FAVOUR OF MANAGEMENT WILL BE VOTED IN FAVOUR OF THE REMAINING NOMINEES AND MAY BE VOTED FOR A SUBSTITUTE NOMINEE UNLESS THE SHAREHOLDER HAS SPECIFIED IN THE PROXY THAT HIS/HER SHARES ARE TO BE WITHHELD FROM VOTING IN RESPECT OF THE ELECTION OF DIRECTORS.

Corporate Cease Trade Orders or Bankruptcies

Except as set out below, none of the directors or officers of the Corporation is, or has been within the ten years before the date of this Circular, a director or officer of any other issuer that, while that person was acting in that capacity, was the subject of a cease trade or similar order or an order that denied the issuer access to any statutory exemptions under Canadian securities legislation for a period of more than 30 consecutive days or was declared bankrupt, made a proposal under any legislation relating to bankruptcy or insolvency or was subject to or instituted any proceedings,



arrangement or compromise with creditors or had a receiver, receiver-manager or trustee appointed to hold the assets of that company.

On May 7, 2024, the Ontario Securities Commission (the “OSC”) issued a Failure to File Cease Trade Order (the “FFCTO”) as a result of the failure of the Corporation to file its audited annual financial statements, management’s discussion and analysis, and certificates (the “Annual Filings”), when due. Following the filing of its Annual Filings, the Corporation received a revocation order from the OSC regarding the lifting of the FFCTO effective June 27th, 2024.

Penalties or Sanctions

None of the directors or officers of the Corporation has been subject to any penalties or sanctions imposed by a court relating to Canadian securities legislation or by a Canadian securities regulatory authority or has entered into a settlement agreement with a Canadian securities regulatory authority or been subject to any other penalties or sanctions imposed by a court or regulatory body that would likely be considered important to a reasonable investor in making an investment decision.

Personal Bankruptcies

None of the directors or officers of the Corporation has, during the ten years prior to the date hereof, become bankrupt, made a proposal under any legislation relating to bankruptcy or insolvency or has been subject to or instituted any proceedings, arrangement or compromise with creditors, or had a receiver, receiver-manager or trustee appointed to hold the assets of the director or officer.

Conflicts of Interest

The directors are required by law to act honestly and in good faith with a view to the best interests of the Corporation and to disclose any interests that they may have in any project or opportunity of the Corporation. If a conflict of interest arises at a meeting of the Board, any director in a conflict will disclose his interest and abstain from voting on such matter. To the Corporation’s knowledge, and other than disclosed herein, there are no known existing or potential conflicts of interest among the Corporation, its promoters, directors and officers or other members of management of the Corporation or of any proposed promoter, director, officer or other member of management as a result of their outside business interests, except that certain of the directors and officers do or may serve as directors and officers of other companies, and therefore it is possible that a conflict may arise between their duties to the Corporation and their duties as a director or officer of such other companies.

Management recommends that Shareholders vote FOR the election of the directors.

2. Appointment of Auditors

PROXIES RECEIVED IN FAVOUR OF MANAGEMENT WILL BE VOTED IN FAVOUR OF THE APPOINTMENT OF MCGOVERN HURLEY LLP, CHARTERED ACCOUNTANTS, AS AUDITORS OF THE CORPORATION TO HOLD OFFICE UNTIL THE NEXT ANNUAL MEETING OF SHAREHOLDERS AND THE AUTHORIZATION OF THE DIRECTORS TO FIX THEIR REMUNERATION, UNLESS THE SHAREHOLDER HAS SPECIFIED IN THE PROXY THAT HIS/HER SHARES ARE TO BE WITHHELD FROM VOTING IN RESPECT THEREOF.

Shareholders will be asked to appoint McGovern Hurley LLP, Chartered Accountants, as the auditor for the Company for the ensuing year. McGovern Hurley LLP was first appointed by resolution of the board of directors of the Corporation, subject to shareholder approval, dated November 5, 2025. Attached as Schedule “B” are the documents



comprising the reporting package filed on SEDAR+ by the Company as required pursuant to National Instrument 51-102, section 4.11 (Change of Auditor).

The Board recommends that Shareholders vote FOR the appointment of the auditor of the Corporation and remuneration to be fixed by the directors.

3. Approval of Amended and Restated 2026 Omnibus Incentive Plan

The shareholders are being asked to approve the 2026 Amended and Restated Omnibus Equity Incentive Compensation Plan (the “**2026 Plan**” or the “**Plan**”). The 2026 Plan is an omnibus equity incentive compensation plan pursuant to which the Company may grant options, share appreciation rights, restricted share units, deferred share units and performance share units to eligible participants. If approved at the Meeting and accepted by the TSX Venture Exchange (the “**Exchange**”), the 2026 Plan will replace and supersede the Company’s 2025 Omnibus Equity Incentive Plan approved by shareholders on June 26, 2025 (the “**2025 Plan**”), except as provided in the Plan.

The purpose of the Plan is to (i) attract, retain and motivate qualified directors, officers, employees and consultants, (ii) align the interests of participants with shareholders, and (iii) encourage long-term share ownership and value creation through equity-based compensation.

The Corporation adopted a “rolling” stock option plan in 2013 and obtained shareholder approval annually thereafter, as required by Exchange policies. On June 28, 2017, shareholders approved the amendment of the rolling plan to a “fixed” stock option plan (the “**2017 Fixed Plan**”), reserving 7,344,976 common shares for issuance (being 12% of the issued and outstanding shares at that time).

In 2019 and 2020, the Corporation completed a normal course issuer bid under Exchange policies, which reduced the number of issued and outstanding common shares and, correspondingly, the maximum number of shares that could be reserved for issuance to insiders under the 2017 Fixed Plan. Accordingly, shareholders approved an amended plan on April 27, 2020 (the “**Predecessor Plan**”), increasing the maximum number of common shares issuable under the stock option plan to 8,466,099 (being 14% of the issued and outstanding shares at that time), based on disinterested shareholder approval.

In response to evolving compensation practices and Exchange requirements, the Company adopted an omnibus plan beginning in 2021 to permit the grant of stock options (the “**Options**”), as well as restricted share units (“**RSUs**”), deferred share units (“**DSUs**”), performance share units (“**PSUs**”) and share appreciation rights (“**SARs**”, together with RSUs, DSUs and PSUs referred to collectively as the “**Non-Option Awards**”), and has subsequently amended and restated the plan periodically to maintain the desired share reserve and allocation between Options and Non-Option Awards. The Non-Option Awards may be settled, if and when vested, in Common Shares of the Corporation or the cash equivalent, at the election of the Corporation.

Since June 29, 2021, the Company’s omnibus incentive plan has been a “fixed” plan under Exchange Policy 4.4 with an overall maximum share reserve of 14% of the Company’s issued and outstanding common shares (calculated as of the effective date of the applicable plan). The 14% has not increased since that time. However, because it is a fixed plan, awards that vest or are exercised and settled through the issuance of common shares do not automatically replenish the share reserve. As a result, the Company has sought disinterested shareholder approval from time to time to amend and restate the plan to replenish (top up) the share reserve back to the same 14% limit and, where appropriate, to adjust the allocation between options and Non-Option Awards within that 14% limit.

The Company is now seeking disinterested shareholder approval of the 2026 Plan to replenish the available share



reserve back to 14% as of the effective date of the 2026 Plan, and to update the plan as described in this Circular.

The Plan continues to provide for a maximum number of common shares reserved for issuance equal to 14% of the Company's issued and outstanding common shares as at the effective date of the Plan. As at May 11, 2026 (the effective date of the 2026 Plan), this maximum is 8,900,704 common shares based on 63,576,462 common shares issued and outstanding as at that date. The amendments reflected in the 2026 Plan are intended to replenish (top up) the number of common shares available for issuance back to this 14% maximum and do not increase the 14% plan limit. Of the 8,900,704 common shares reserved, 2,670,211 common shares (30%) are reserved for issuance pursuant to options and 6,230,493 common shares (70%) are reserved for issuance pursuant to Non-Option Awards.

The 2026 Plan will be, administered by the Board or, if the Board so delegates, a committee of directors appointed from time to time by the Board (such as the Compensation Committee). In administering the 2026 Plan, the Board or committee, as the case may be, may select participants to whom Options and Non-Option Awards are granted and determine the terms thereof, including but not limited to expiry terms, vesting terms (provided Non-Option Awards do not vest, except in limited circumstances, earlier than the one-year anniversary of the date of their grant), and performance conditions if any.

The 2026 Plan provides that the Board or committee may from time to time, in its discretion, grant to directors, officers, employees and consultants of the Corporation, or its subsidiaries, non-transferable Options to purchase Common Shares, or non-transferable Non-Option Awards, which may be settled in Common Shares or the cash equivalent at the discretion of the Company, in each case subject to the maximum number of shares authorized to be reserved for issuance as set out above.

The number of Common Shares for issuance in any 12-month period to any one person may not exceed 5% of the issued and outstanding Common Shares (unless the Corporation has obtained disinterested shareholder approval) and the number of Common Shares reserved for issuance in any 12-month period to any one Consultant or Persons (in aggregate) performing Investor Relations Activities (each as defined in the policies of the Exchange) may not exceed 2% of the issued and outstanding Common Shares.

The Board believes that the approval of the 2026 Plan is in the best interests of the Corporation. Accordingly, the Board adopted, subject to obtaining disinterested shareholder approval at the Meeting, the 2026 Plan. Pursuant to the Policy, disinterested shareholder approval ("**Disinterested Shareholder Approval**") is required in the event that, *inter alia*, the aggregate number of Common Shares of the Corporation reserved for issuance pursuant to Options or Non-Option Awards granted to Insiders exceeds Ten Percent (10%) of the issued and outstanding shares of the Corporation at any point in time. The Policy requires that in a case such as this, in which the Corporation is seeking to reserve greater than Ten Percent (10%) of the issued and outstanding Common Shares for issuance to Insiders, the Corporation must obtain approval by a majority of the votes cast by all shareholders at the Meeting excluding votes attaching to Common Shares beneficially owned by: (i) Insiders to whom Options or Non-Option Awards may be granted under the 2026 Plan; and (ii) Associates of such Insiders (as defined in Policy 1.1 of the Exchange) (the "Insider Participants"). As the total number of Common Shares issuable pursuant to Options and Non-Option Awards under the 2026 Plan (together with any prior/existing incentive plans) represents 14% of the issued and outstanding Common Shares of the Corporation as at the date of this Circular (and the Effective Date of the 2026 Plan), the Corporation is seeking Disinterested Shareholder Approval. There are 12,415,466 Common Shares of the Corporation beneficially owned by the Insider Participants (the "**Excluded Common Shares**"), representing 19.5% of the issued and outstanding Common Shares as at the date of this Circular.

The shareholders of the Corporation will be asked at the Meeting to approve and ratify the 2026 Plan in substantially the form attached hereto as Schedule "C". If a majority of the votes cast by all shareholders at the Meeting, excluding



the Excluded Common Shares, are in favour of the 2026 Plan, the 2026 Plan will be implemented and effective as of the date of the Meeting. The terms of any prior incentive plan will continue in effect after approval of the 2026 Plan only for so long as and solely to the extent necessary to administer previously granted awards that remain outstanding under such plan.

The 2026 Plan has been conditionally approved by the Exchange.

If implemented and approved, the 2026 Plan allows for amendments to be made to the 2026 Plan without shareholder approval in limited circumstances, such as in order to cause the 2026 Plan to comply with the Policy. Such limited circumstances are set out in the attached 2026 Plan. As such, the 2026 Plan may be amended at a later time if and to the extent required by the Exchange.

If Disinterested Shareholder Approval is not obtained, the 2025 Plan will remain in effect as previously approved.

A copy of the 2026 Plan, setting out all terms thereof, is attached as Schedule “C” to the Circular.

At the Meeting, the Shareholders will be asked to consider, and if deemed advisable, approve the following resolution:

“BE IT RESOLVED THAT:

- a) the Amended and Restated 2026 Omnibus Incentive Plan, as described in the Information Circular of the Corporation dated May 11, 2026, be and is hereby ratified and approved; and
- b) any director or officer of the Corporation is authorized and directed to do all things and to execute and deliver or to cause to be executed and delivered any documents considered to be necessary or desirable, in such director’s or officer’s sole discretion, to give effect to these resolutions.”

In order for the resolution to be passed, approval by the majority of the votes cast by all shareholders, present in person and by proxy at the Meeting, excluding the Excluded Common Shares is required.

THE PERSONS NAMED IN THE ENCLOSED FORM OF PROXY, UNLESS OTHERWISE INSTRUCTED, INTEND TO VOTE IN FAVOUR OF THE RESOLUTION APPROVING AND RATIFYING THE AMENDED AND RESTATED 2026 OMNIBUS INCENTIVE PLAN.

The Board recommends that Shareholders vote FOR the approval of the Amended and Restated 2026 Omnibus Incentive Plan.



ADDITIONAL INFORMATION

Additional financial information for the Corporation is available in the Corporation's audited financial statements for the year ended December 31, 2025 and related management's discussion and analysis for the year ended December 31, 2025, which have been filed with Canadian securities regulators and are available under the Corporation's profile at www.sedarplus.ca.

APPROVAL BY BOARD OF DIRECTORS

The contents and the sending of this Circular have been approved by the board of directors of the Corporation.

DATED at Toronto, this 11th day of May, 2026

By Order of the Board of directors
(Signed) "Grant Schuettrumpf"
President and Chief Executive Officer



Schedule “A”

YANGAROO Inc. Audit Committee Charter

The purpose of the Audit Committee shall be to assist the Board in its oversight of the integrity of the financial statements of the Corporation, of the Corporation's compliance with legal and regulatory requirements, of the independence and qualification of the independent auditors, and of the performance of the Corporation's internal audit function and independent auditors.

CHAIR

The Board appoints or re-appoints the Chair of the Committee annually when it completes the appointments for all Board committee members following the Annual General Meeting of shareholders. In selecting the Chair, the Board takes into consideration those directors who bring background skills and experience relevant to financial statement review and analysis. The Chair shall also be “financially literate” as such term is defined under applicable Canadian regulatory requirements.

The Chair shall provide leadership to Committee members in fulfilling the mandate set out in these terms of reference. He or she shall work with the Chief Executive Officer and the Chairman of the Board in planning Committee meetings and agendas. The Chair of the Committee reports to the Board on behalf of the Committee on the matters and issues covered or determined at each Committee meeting.

RESPONSIBILITIES

In assisting the Board in fulfilling its responsibilities relating to the Corporation's corporate accounting and reporting practices the Audit Committee shall:

1. review and discuss with management and the independent auditors the annual audited financial statements, the quarterly financial statements, Management's Discussion and Analysis accompanying such financial statements and any other matter required to be reviewed under applicable legal, regulatory or stock exchange requirements, and report thereon to the Board;
2. review the results of the external audits and any changes in accounting practices or policies and the financial statement impact thereof;
3. review the terms of engagement and audit plans of the external auditors and determine through discussion with the auditors that no restrictions were placed by management on the scope of their examination or on its implementation;
4. assess management's programs and policies regarding the adequacy and effectiveness of internal controls over the accounting and financial reporting system within the Corporation;
5. recommend to the Board a firm of independent auditors for appointment by the shareholders and report to the Board on the fees and expenses of such auditors. The Committee shall have the authority and responsibility to select, evaluate and if necessary replace the independent auditors. The Committee shall have the authority to approve all audit engagement fees and terms and the Committee, or a member of the Committee, must review and pre-approve any non-audit service provided to the Corporation by the Corporation's independent auditors and consider the impact on the independence of the auditors;
6. enquire into and report regularly to the Board, with associated recommendations, on any matter referred to the Committee;
7. discuss with management and the independent auditors, as appropriate, earnings press releases and any financial information and earnings guidance provided to analysts and rating agencies;
8. discuss with management and the independent auditors, as appropriate, any audit problems or difficulties and management's response, and the Corporation's risk assessment and risk management policies, including the



Corporation's major financial risk exposure and steps taken by management to monitor and mitigate such exposure;

9. obtain and review at least annually a formal written report from the independent auditors delineating the auditing firm's procedures for reviewing internal controls and any material issues raised by (i) the auditing firm's internal quality-control reviews, (ii) peer reviews of the firm, or (iii) any governmental or other inquiry or investigation relating to any audit conducted by the firm. The Committee will also review steps taken by the auditing firm to address any findings in any of the foregoing reviews. Also, in order to assess auditor independence, the Committee will review at least annually all relationships between the independent auditors and the Corporation;
10. prepare and publish an annual Committee report in the Corporation's proxy circular;
11. conduct an annual self-evaluation in respect of the effectiveness of the Committee;
12. set clear hiring policies for employees or former employees of the independent auditors; and
13. establish procedures for the receipt, retention and treatment of complaints regarding accounting, internal accounting controls or auditing matters, including procedures for the confidential, anonymous submission by employees of the Corporation of concerns regarding questionable accounting or auditing matters.

The Committee shall hold in camera sessions without members of management as frequently as is determined necessary by the Committee members.

The Committee shall have authority to retain such outside counsel, experts and other advisors as the Committee may deem appropriate in its sole discretion. The Committee shall have sole authority to approve related fees and retention terms.

The Committee shall meet separately with the Corporation's independent auditors at least on an annual basis and more often as determined necessary by the Committee members.

The Committee shall review at least annually the adequacy of this charter and recommend any proposed changes to the Board for approval.

Committee Composition:	Three or more members, of which the majority shall be independent directors. All members shall have sufficient financial experience, financial literacy and ability to enable them to discharge their responsibilities.
Quorum:	Majority of members.



Schedule “B”

CHANGE OF AUDITOR

REPORTING PACKAGE PURSUANT TO SECTION 4.11 OF NATIONAL INSTRUMENT 51-102

[SEE ATTACHED]

YANGAROO INC.

Notice of Change of Auditor

Pursuant to NI 51-102 (Section 4.11)

TO: British Columbia Securities Commission
Alberta Securities Commission
Ontario Securities Commission

AND TO: Baker Tilly WM LLP, Chartered Professional Accountant (“**Baker Tilly**”)

AND TO: McGovern Hurley LLP, Chartered Professional Accountants (“**McGovern Hurley**”)

RE: Notice of Change of Auditor

In accordance with section 4.11 [*Change of Auditor*] of National Instrument 51-102 – *Continuous Disclosure Obligations* (“**NI 51-102**”), Yangaroo Inc. (the “**Corporation**”) reports that:

1. at the request of the Corporation, Baker Tilly has resigned as auditor of the Corporation effective as of November 5, 2025;
2. subject to applicable regulatory and shareholder approvals, the board of directors of the Corporation (the “**Board**”) has appointed McGovern Hurley as the new auditor of the Corporation effective November 5, 2025;
3. at the next annual general meeting of the shareholders of the Corporation, the shareholders of the Corporation will be asked to approve the appointment of McGovern Hurley as auditor of the Corporation;
4. the resignation of Baker Tilly and the appointment of McGovern Hurley were considered and approved by the audit committee of the Board and the Board;
5. the reports of Baker Tilly on the audited financial statements of the Corporation did not express a modified opinion during the relevant period, being the financial years ended December 31, 2024 and 2023; and
6. there are no “reportable events” as such terms is defined in NI 51-102.

Dated: November 05, 2025

YANGAROO INC.

Per: [Signed] “Peter Kanniah”
Peter Kanniah
Chief Financial Officer



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F: +1 604.688.3497

vancouver@bakertilly.ca
www.bakertilly.ca

November 5, 2025

To: British Columbia Securities Commission
Alberta Securities Commission
Ontario Securities Commission

Dear Sirs / Mesdames:

Re: Yangaroo Inc.
Change of Auditor Notice dated November 5, 2025

Pursuant to section 4.11 of National Instrument 51-102, we have read the Change of Auditor Notice (the "Notice") and agree with the statement contained in the Notice pertaining to our firm.

Baker Tilly WM LLP

Per: Anna C. Moreton, Inc. Incorporated Partner
Baker Tilly WM LLP
Chartered Professional Accountants

ASSURANCE • TAX • ADVISORY

Baker Tilly WM LLP is a member of Baker Tilly Canada Cooperative, which is a member of the global network of Baker Tilly International Limited. All members of Baker Tilly Canada Cooperative and Baker Tilly International Limited are separate and independent legal entities.

McGovern Hurley

Audit. Tax. Advisory.

November 5, 2025

Ontario Securities Commission
Alberta Securities Commission
British Columbia Securities Commission

Dear Sirs/Mesdames:

Re: Yangaroo Inc.

We have reviewed the information contained in the Change of Auditor Notice of Yangaroo Inc. dated November 5, 2025 (the "Notice"), which we understand will be filed pursuant to Section 4.11 of National Instrument 51-102.

Based on our knowledge as of the date hereof, we agree with the statements contained in the Notice. We have no basis to agree or disagree with the comments in the notice relating to Baker Tilly WM LLP.

Yours truly,

McGovern Hurley LLP



Chartered Professional Accountants
Licensed Public Accountants



Schedule “C”

AMENDED AND RESTATED 2026 OMNIBUS INCENTIVE PLAN

[SEE ATTACHED]

YANGAROO INC.

**2026 AMENDED AND RESTATED
OMNIBUS EQUITY INCENTIVE COMPENSATION PLAN**

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YANGAROO INC.

2026 AMENDED AND RESTATED

OMNIBUS EQUITY INCENTIVE COMPENSATION PLAN

ARTICLE 1

ESTABLISHMENT, PURPOSE AND DURATION

1.1 Establishment of the Plan The following is the omnibus equity incentive compensation plan of YANGAROO Inc. (the “**Company**”) pursuant to which stock based compensation Awards (as defined below) may be granted to eligible Participants (as defined below). The name of the plan is the 2026 Amended and Restated Omnibus Equity Incentive Compensation Plan (the “**Plan**”), which replaces and supersedes the 2025 Omnibus Equity Incentive Plan approved by the Company’s shareholders on June 26, 2025 (the “**2025 Plan**”) except as indicated herein.

The Plan permits the grant of Options, Share Appreciation Rights, Restricted Share Units, Deferred Share Units and Performance Share Units (as such terms are defined below).

In order to advance the interests of the Company and its stockholders and for the purposes described in Section 1.2 below, the Board of Directors (as defined below) has authorized the establishment of the Plan, as amended and restated effective May 11, 2026, subject to the approval of the Company’s disinterested shareholders, the TSXV and any other applicable regulatory authorities. If the Plan, as amended and restated, is approved by the Company’s disinterested shareholders at the shareholders’ meeting on June 25, 2026, and the TSXV (as defined below), all Awards granted pursuant to the Plan, as well previous versions of the Plan, such as the 2025 Plan and all prior equity incentive plans of the Company (collectively, the “**Predecessor Plan**”), shall be subject to the Plan, as amended and restated.

1.2 Purpose of the Plan The purposes of the Plan are to: (i) provide the Company with a mechanism to attract, retain and motivate highly qualified directors, officers, employees and consultants, (ii) align the interests of Participants with that of other shareholders of the Company generally, and (iii) enable and encourage Participants to participate in the long-term growth of the Company through the acquisition of Shares (as defined below) as long-term investments.

1.3 Successor Plan The Company previously established a “rolling” stock option plan at a meeting of the shareholders on August 15th, 2013, and at each annual meeting of the shareholders thereafter, as required pursuant to the policies of the TSXV. At its annual general and special meeting of its shareholders held on June 28, 2017, the Company sought and obtained the approval of the shareholders to amend the “rolling” plan to a “fixed” plan (the “**2017 Fixed Plan**”), providing for a maximum of 7,344,976 common shares of the Company to be reserved for issuance under the 2017 Fixed Plan, being Twelve Percent (12%) of the issued and outstanding shares of the Company as at the date of such approval (June 28, 2017). At the Company’s annual general and special meeting of shareholders held on April 27, 2020, disinterested shareholder approval of an amended plan (the “**Predecessor Plan**”) was obtained, increasing this maximum number to 8,466,099, being Fourteen Percent (14%) of the Company’s issued and outstanding shares as at the effective date of the Predecessor Plan. At the Company’s annual general and special meeting of shareholders held on June 29, 2021, disinterested shareholder approval of an amended and restated omnibus incentive plan (the “**2021 Plan**”) was obtained. Pursuant to the 2021 Plan, and together with the Predecessor Plan, the percentage and total number of Shares

reserved for issuance did not increase (being 14% of the issued and outstanding Shares of the Company as at the effective date of the 2021 Plan), except the allocation of Shares underlying Options as opposed to non-Option Awards was divided such that the maximum number of Shares issuable pursuant to Options was 6,651,935 in the aggregate (being 11% of the issued and outstanding Shares of the Company as at the effective date of the 2021 Plan), and the maximum number of issuable pursuant to SARs, RSUs, DSUs and PSUs was 1,814,164 in the aggregate (being 3% of the issued and outstanding Shares of the Company as at the effective date of the 2021 Plan). As a “fixed” plan, Awards that are exercised or vest and are settled pursuant to the 2021 Plan, in each case by share issuance, do not automatically replenish.

Amendments made thereafter were primarily intended to replenish and increase the number of Shares available for issuance by the Company, in particular pursuant to Non-Option Awards, without increasing the total percentage of Shares reserved for issuance (being 14% of the issued and outstanding Shares of the Company as at the effective date of the relevant incentive plan, for example the 2025 Plan).

Amendments made to the 2026 Plan continue to replenish the number of Shares available for issuance to allow the number of Shares issuable pursuant to the Plan to remain at 14% of the issued and outstanding Shares of the Company as at the Effective Date, being an aggregate 8,900,704 Shares based on 63,576,462 issued and outstanding Shares as at the Effective Date, with 30% of the Shares reserved for issuance pursuant to Options (being 2,670,211 Shares) and 70% of the Shares reserved for issuance pursuant to Non-Option Awards (being 6,230,493 Shares).

DEFINITIONS

Whenever used in the Plan, the following terms shall have the respective meanings set forth below, unless the context clearly requires otherwise, and when such meaning is intended, such term shall be capitalized.

“**Affiliate**” means any corporation, partnership or other entity (i) in which the Company, directly or indirectly, has majority ownership interest or (ii) which the Company controls. For the purposes of this definition, the Company is deemed to “**control**” such corporation, partnership or other entity if the Company possesses, directly or indirectly, the power to direct or cause the direction of the management and policies of such corporation, partnership or other entity, whether through the ownership of voting securities, by contract or otherwise, and includes a corporation which is considered to be a subsidiary for purposes of consolidation under International Financial Reporting Standards.

“**Award**” means, individually or collectively, a grant under the Plan of Options, SARs, Deferred Share Units, Restricted Share Units or Performance Share Units, in each case subject to the terms of the Plan.

“**Award Agreement**” means either (i) a written agreement entered into by the Company or an Affiliate of the Company and a Participant setting forth the terms and provisions applicable to Awards granted under the Plan; or (ii) a written statement issued by the Company or an Affiliate of the Company to a Participant describing the terms and provisions of such Award. All Award Agreements shall be deemed to incorporate the provisions of the Plan. An Award Agreement need not be identical to other Award Agreements either in form or substance.

“Blackout Period” means a period of time during which the Participant cannot sell Shares, due to applicable law or policies of the Company in respect of insider trading.

“Board” or **“Board of Directors”** means the Board of Directors of the Company as may be constituted from time to time.

“Cashless Exercise” means an arrangement between the Company and a brokerage firm pursuant to which the brokerage firm will loan money to a Participant to purchase the Shares underlying the Options, whereby the brokerage firm then sells a sufficient number of Shares to cover the exercise price of the Options in order to repay the loan made to the Participant and the brokerage firm receives an equivalent number of Shares from the exercise of the Options and the Participant then receives the balance of Shares or the cash proceeds from the balance of such Shares.

“Cause” means (i) if the Participant is an Employee, the occurrence of any applicable grounds for which the Company is entitled to terminate the Participant’s employment summarily without notice and without compensation or damages in lieu of notice pursuant to the requirements of the Employment Standards Legislation; or otherwise (ii) if the Participant is not an Employee, (A) if the Participant is a party to a written service agreement with the Company, and within such agreement “Cause” (or such other similar term which would allow the service agreement to be terminated without any notice of pay in lieu thereof) is defined, “Cause” (or such other similar term) as defined in such service agreement, or (ii) if the Participant is not a party to a written service agreement with the Company, within which “Cause” (or such other similar term which would allow the service agreement to be terminated without any notice of pay in lieu thereof) is defined, any reason determined by the Company to terminate the service relationship, without notice or payment in lieu of notice in accordance with applicable law.

“Change of Control” means the occurrence of any one or more of the following events:

- (i) a consolidation, merger, amalgamation, arrangement or other reorganization or acquisition involving the Company as a result of which the holders of Shares prior to the completion of the transaction hold or beneficially own, directly or indirectly, less than 50% of the outstanding Voting Securities of the successor corporation after completion of the transaction;
- (ii) the sale, lease, exchange or other disposition, in a single transaction or a series of related transactions, of all or substantially all of the assets of the Company and/or any of its subsidiaries to any other person or entity, other than a disposition to a wholly-owned subsidiary in the course of a reorganization of the assets of the Company and its subsidiaries;
- (iii) a resolution is adopted to wind-up, dissolve or liquidate the Company;
- (iv) an acquisition by any person, entity or group of persons or entities acting jointly or in concert of beneficial ownership of more than 50% of the Shares; or
- (v) the Board adopts a resolution to the effect that a Change of Control as defined herein has occurred or is imminent.

“Code” means the U.S. Internal Revenue Code of 1986, as amended from time to time, or any successor thereto.

“Committee” means the Board of Directors or if so delegated in whole or in part by the Board, the Compensation Committee of the Board of Directors, or any other duly authorized committee of the Board appointed by the Board to administer the Plan.

“Company” means YANGAROO Inc.

“Consultant” means, in relation to the Company, an individual (other than an Employee or a Director of the Company) or company that: (a) is engaged to provide on an ongoing bona fide basis, consulting, technical, management or other services to the Issuer or to an Affiliate of the Company, other than services provided in relation to a distribution of securities; (b) provides the services under a written contract between the Company or an Affiliate of the Company and the individual or the company, as the case may be; (c) in the reasonable opinion of the Company, spends or will spend a significant amount of time and attention on the affairs and business of the Company or an Affiliate of the Company; and (d) has a relationship with the Company or an Affiliate of the Company that enables the individual to be knowledgeable about the business and affairs of the Company.

“Deferred Share Unit” means an Award denominated in units that provides the holder thereof with a right to receive Shares or cash or a combination thereof upon settlement of the Award, granted under and subject to the terms of the Plan.

“Director” means any individual who is a member of the Board of Directors of the Company.

“Disability” the Participant is unable to carry out the essential responsibilities and essential functions of the Participant’s employment or service by reason of any medically determinable physical or mental impairment which, provided that the Participant is entitled to accommodation under applicable human rights laws, cannot be accommodated without imposing undue hardship on the Company.

“Dividend Equivalent” means a right with respect to an Award to receive cash, Shares or other property equal in value and form to dividends declared by the Board and paid with respect to outstanding Shares. Dividend Equivalents shall not apply to an Award unless specifically provided for in the Award Agreement, and if specifically provided for in the Award Agreement shall be subject to such terms and conditions set forth in the Award Agreement as the Committee shall determine.

“Effective Date” means May 11, 2026.

“Employee” means any employee or officer of the Company or an Affiliate of the Company. Directors who are not otherwise employed by the Company or an Affiliate of the Company shall not be considered Employees under the Plan.

“Employment Standards Legislation” means the applicable employment standards legislation, as amended from time to time, that applies in the province in which the Participant primarily works. This Plan will be administered to ensure that the Employee Participants will always receive their minimum statutory entitlements required by the Employment Standards Legislation.

“Existing Options” means the options to purchase Shares granted to the directors, officers and service providers of the Company pursuant to the Predecessor Plan.

“FMV” means, unless otherwise required by any applicable provision of the Code or any regulations thereunder or by any applicable accounting standard for the Company’s desired accounting for Awards or by the policies of the TSXV, a price that is determined by the Committee, provided that such price cannot be less than the last closing price of the Shares on the TSXV less any discount permitted by the rules or policies of the TSXV.

“Good Reason” means, in relation to a resignation or Retirement, that following a Change of Control, any of the following occur without the consent of the Participant:

- (i) a substantial and detrimental alteration of the Participant’s position or title or in the nature or status of the Participant’s responsibilities from those in effect immediately prior to the Change of Control;
- (ii) a reduction of 10% or more of the Participant’s base salary or target bonus and cancellation of applicable compensation plans and the failure to replace those plans with substantially comparable plans;
- (iii) the failure to continue to provide employment benefits and perquisites comparable, in the aggregate, to those enjoyed immediately prior to the Change of Control; or
- (iv) the Participant being relocated to an office or location that is 50 kilometres or more from the current location where the Participant is employed,

(each, a **“Good Reason Event”**),

provided that: (a) within 10 business days following the occurrence of any Good Reason Event, the Participant provides written notice to the Company or an Affiliate of the Company detailing the Good Reason Event relied upon (failing which such occurrence will cease to constitute a Good Reason Event); and (b) the Company or such Affiliate of the Company fails to cure the Good Reason Event within two weeks after receipt of such written notice.

“Grant Price” means the price against which the amount payable is determined upon exercise of a SAR.

“Insider” shall have the meaning ascribed thereto in Section 1(1) of the OSA.

“ITA” means the *Income Tax Act* (Canada).

“Net Exercise” means the exercise of Options, excluding Options held by any Person providing Investor Relations services, without the Participant making any cash payment so the Corporation does not receive any cash from the exercise of the subject Options, and instead the Participant receives only the number of underlying Shares that is the equal to the quotient obtained by dividing: (A) the product of the number of Options being exercised multiplied by the difference between the VWAP of the underlying Shares and the exercise price of the subject Options; by (B) the VWAP of the underlying Shares.

“Non-Employee Director” means a Director who is not an Employee.

“Non-Option Award” means an Award other than an Option and **“Non-Option Awards”** means more than one.

“Option” means the conditional right to purchase Shares at a stated Option Price for a specified period of time subject to the terms of the Plan.

“Option Price” means the price at which a Share may be purchased by a Participant pursuant to an Option, as determined by the Committee.

“OSA” means the *Securities Act* (Ontario), as may be amended from time to time.

“Participant” means an Employee, Non-Employee Director, Officer, Management Company Employee or Consultant (each as defined in the policies of the TSXV) of the Corporation (or a subsidiary thereof) who has been selected to receive an Award, or who has an outstanding Award granted under the Plan or the Predecessor Plan.

“Performance Period” means the period of time during which the assigned performance criteria must be met in order to determine the degree of payout and/or vesting with respect to an Award.

“Performance Share Unit” means an Award granted under Article 9 herein and subject to the terms of the Plan, denominated in units, the value of which at the time it is payable is determined as a function of the extent to which corresponding performance criteria have been achieved.

“Period of Restriction” means the period when an Award of Restricted Share Units is subject to forfeiture based on the passage of time, the achievement of performance criteria, and/or upon the occurrence of other events as determined by the Committee, in its discretion.

“Person” shall have the meaning ascribed to such term in Section 1(1) of the OSA.

“Restricted Share Unit” means an Award denominated in units subject to a Period of Restriction, with a right to receive Shares or cash or a combination thereof upon settlement of the Award, granted under Article 7 herein and subject to the terms of the Plan.

“Retirement” or **“Retire”** means a Participant’s permanent withdrawal from employment or office with the Company or an Affiliate of the Company on terms and conditions accepted and determined by the Board, and upon the fulfillment of the following criteria:

- (i) the Participant has participated in the Plan for at least 2 full years prior to the applicable Termination Date (as calculated from the grant date of their first Award under this Plan);
- (ii) the Participant is at least 60 years of age as of the Termination Date;
- (iii) the Participant provides at least 6 months’ advance written notice of their Retirement; and
- (iv) the Participant’s employment or services is not terminated for Cause prior to the conclusion of the applicable Retirement notice period.

“Share Appreciation Right” or **“SAR”** means the conditional right to receive the difference between the FMV of a Share on the date of exercise over the Grant Price, pursuant to the terms of Article 6 herein and subject to the terms of the Plan.

“Shares” means common shares of the Company.

“Termination Date” means:

- (i) in the case of a Participant who dies, the date of death; and
- (ii) in all other cases, the date designated by the Company or an Affiliate of the Company, in written notice to a Participant, as the date on which a Participant ceases to be eligible to participate under the Plan as a result of a termination of employment, officer position, board service or consulting arrangement with the Company or any Affiliate of the Company for any reason (whether such date is selected by agreement with the Participant, unilaterally by the Company or the Affiliate, whether with or without advance notice to the Participant, and whether or not that cessation is lawful; but provided that, in the case of Retirement, Voluntary Resignation or voluntary termination by that Participant, the Termination Date may not be earlier than the date notice of that Retirement, Voluntary Resignation or termination was first given by that Participant).

For greater clarity:

1. If the Participant is an Employee and receives pay in lieu of notice of termination of employment, the definition of the “Termination Date” will be extended to include the minimum statutory notice period required by the Employment Standards Legislation. However, the definition of “Termination Date” will not include any period following the conclusion of the minimum statutory notice period, and specifically does not include any reasonable notice period under the common law.

2. Subject to the requirements of the Employment Standards Legislation, the “Termination Date” will be determined without regard to any applicable notice of termination, severance or termination pay, compensation or indemnity in lieu of notice, wrongful or constructive dismissal damages, damages for the failure to provide reasonable notice, period of salary continuation or of deemed employment or of deemed service, or any claim whatsoever by the Participant to any of the foregoing (whether express or implied and whether arising under contract or statute or otherwise at law in any manner), and none of the foregoing shall be considered for the purposes of determining the Participant’s entitlements under the Plan. The Termination Date will always be determined to ensure that the Participant receives their minimum statutory entitlements pursuant to the Employment Standards Legislation.

“TSXV” means the TSX Venture Exchange and at any time the Shares are not listed and posted for trading on the TSXV, shall be deemed to mean such other stock exchange or trading platform upon which the Shares trade and which has been designated by the Committee.

“U.S. Participants” means those Participants that are United States taxpayers.

“Vesting Date” means the date or dates set out in the Award Agreement on which an Award will vest, or such earlier date as is provided for in the Plan or is determined by the Committee, provided that no Awards other than Options may vest earlier than the one-year anniversary of the date on which the Award was granted, subject to acceleration in the event that a Participant who dies or in the event a Participant is no longer an eligible Participant in connection with a Change of Control, take-over bid, reverse takeover, or similar transaction.

“Voluntary Resignation” means the decision by a Participant to terminate their employment or services with the Company of their own accord, without being requested or required to do so by the Company.

“Voting Securities” shall mean any securities of the Company ordinarily carrying the right to vote at elections of directors and any securities immediately convertible into or exchangeable for such securities.

“VWAP” means the volume weighted average trading price of the Shares on the TSXV calculated by dividing the total value by the total volume of such securities traded for the Five (5) trading days immediately preceding the exercise of the subject Option.

ARTICLE 2 ADMINISTRATION

2.1 General The Committee shall be responsible for administering the Plan. The Committee may employ attorneys, consultants, accountants, agents and other individuals, any of whom may be an Employee, and the Committee, the Company, and its officers and Directors shall be entitled to rely upon the advice, opinions or valuations of any such persons. All actions taken and all interpretations and determinations made by the Committee shall be final, conclusive and binding upon the Participants, the Company, and all other interested parties. No member of the Committee will be liable for any action or determination taken or made in good faith with respect to the Plan or Awards granted hereunder. Each member of the Committee shall be entitled to indemnification by the Company with respect to any such determination or action in the manner provided for by the Company and its subsidiaries.

2.2 Authority of the Committee The Committee shall have full and exclusive discretionary power to interpret the terms and the intent of the Plan and any Award Agreement or other agreement ancillary to or in connection with the Plan, to determine eligibility for Awards, and to adopt such rules, regulations and guidelines for administering the Plan as the Committee may deem necessary or proper. Such authority shall include, but not be limited to, selecting Award recipients, establishing all Award terms and conditions, including grant, exercise price, issue price and vesting terms, whether Awards payout in cash or Shares where applicable, determining any performance goals applicable to Awards and whether such performance goals have been achieved, and, subject to Article 13, adopting modifications and amendments to the Plan or any Award Agreement, including, without limitation, any that are necessary or appropriate to comply with the laws or compensation practices of the jurisdictions in which the Company and its Affiliates operate or the policies of the TSXV. The Committee shall not make a grant of any Awards while there is any undisclosed Material Information relating to the Corporation (as that term is defined by the policies of the TSXV).

2.3 Delegation The Committee may delegate to one or more of its members any of the Committee's administrative duties or powers as it may deem advisable; provided, however, that any such delegation must be permitted under applicable corporate law.

2.4 Investor Relations The Board shall be required to monitor the trading in the securities of the Company by all Consultants or persons (in the aggregate) retained to provide Investor Relations Activities to the Corporation, which may include the establishment of a designated brokerage account through which such Consultants or person(s) conducts all trades in the securities of the Company or a requirement for such Consultants or person(s) to file insider trade reports with the Board on a basis that is similar to reports required to be filed by reporting insiders under National Instrument 55-104 – Insider Reporting Requirements and Exemptions.

ARTICLE 3 SHARES SUBJECT TO THE PLAN AND MAXIMUM AWARDS

3.1 Maximum Number of Shares Available for Awards The maximum number of Shares issuable pursuant to Options issued under the Plan (including those issuable under the 2025 Plan), together with such number of Shares issuable pursuant to the Predecessor Plan for so long as it's in effect, shall not exceed 2,670,211 in the aggregate, being 30% of all Awards reserved for issuance under the Plan as at the Effective Date. In addition, the maximum number of Shares issuable pursuant to SARs, RSUs, DSUs and PSUs issued under the Plan (including those issuable under the 2025 Plan) shall not exceed 6,230,493 in the aggregate, being 70% of all Awards reserved for issuance under the Plan as at the Effective Date. To the extent that an Award lapses or the rights of its Participant terminate or are paid out in cash (except in the case of Options which cannot be paid out in cash), any Shares subject to such Award shall again be available for the grant of an Award. All Shares issued pursuant to the exercise or the vesting of the Awards granted under the Plan shall be so issued as fully paid and non-assessable Shares. Notwithstanding anything herein to the contrary, any Shares forfeited, cancelled or otherwise not issued for any reason under the awards of the Predecessor Plan shall be available for grants under this Plan. Awards that by their terms are to be settled solely in cash shall not be counted against the number of shares of Shares available for the issuance of Awards under the Plan. Any Dividend Equivalents awarded in respect of DSUs that are satisfied by the issuance of Shares shall be counted against the number of shares of Shares available for the issuance of Awards under the Plan.

3.2 Award Grants to Individuals

- (a) The maximum number of Shares for which Awards may be issued to any one Participant in any 12-month period shall not exceed 5% of the outstanding Shares, calculated on the date an Award is granted to the Participant, unless the Company obtains disinterested shareholder approval as required by the policies of the TSXV.
- (b) The maximum number of Shares for which Awards may be issued to any Consultant in any 12-month period shall not exceed 2% of the outstanding Shares, calculated on the date an Award is granted to the Consultant.
- (c) The maximum number of Shares for which Options may be issued to any persons (in the aggregate) retained to provide Investor Relations Activities (as defined by the TSXV) in any 12-month period shall not exceed 2% of the outstanding Shares, calculated on the date an Award is granted to the Consultant. For the avoidance

of doubt, Options shall be the only form of Award that may be granted to persons retained to provide Investors Relations Activities.

3.3 Award Grants to Insiders Unless disinterested shareholder approval as required by the policies of the TSXV is obtained: (i) the maximum number of Shares for which Awards may be issued to Insiders (as a group) at any point in time shall not exceed 10% of the issued and outstanding Shares as at the Effective Date; and (ii) the aggregate number of Awards granted to Insiders (as a group), within any 12-month period, shall not exceed 10% of the issued and outstanding Shares as at the Effective Date. All Awards granted to Insiders will be subject to, in addition to applicable securities laws and resale restrictions, an Exchange Hold Period (as defined by the policies of the TSXV), as applicable. In addition, if the Exchange Hold Period is applicable, all Awards and any Shares underlying and issued pursuant to such Awards that have vested and/or been exercised prior to the expiry of the Exchange Hold Period must be legended with the Exchange Hold Period, such period commencing on the date of the grant of the Awards, as follows:

“Without prior written approval of TSX Venture Exchange and compliance with all applicable securities legislation, the securities represented by this certificate may not be sold, transferred, hypothecated or otherwise traded on or through the facilities of TSX Venture Exchange or otherwise in Canada or to or for the benefit of a Canadian resident until [the date that is 4 months following the date of grant].”

3.4 Adjustments in Authorized Shares In the event of any corporate event or transaction (collectively, a “**Corporate Reorganization**”) (including, but not limited to, a change in the Shares of the Company or the capitalization of the Company) such as a merger, arrangement, amalgamation, consolidation, reorganization, recapitalization, separation, stock dividend, extraordinary dividend, stock split, reverse stock split, split up, spin-off or other distribution of stock or property of the Company, combination of securities, exchange of securities, dividend in kind, or other like change in capital structure or distribution (other than normal cash dividends) to shareholders of the Company, or any similar corporate event or transaction, the Committee shall make or provide for such adjustments or substitutions, as applicable, in the number and kind of Shares that may be issued under the Plan, the number and kind of Shares subject to outstanding Awards, the Option Price or Grant Price applicable to outstanding Awards, the limit on issuing Awards other than Options granted with an Option Price equal to at least the FMV of a Share on the date of grant or Share Appreciation Rights with a Grant Price equal to at least the FMV of a Share on the date of grant, and any other value determinations applicable to outstanding Awards or to the Plan, as are equitably necessary to prevent dilution or enlargement of Participants’ rights under the Plan that otherwise would result from such corporate event or transaction. In connection with a Corporate Reorganization, the Committee shall have the discretion to permit a holder of Options to purchase (at the times, for the consideration, and subject to the terms and conditions set out in the Plan and the applicable Award Agreement) and the holder will then accept on the exercise of such Option, *in lieu* of the Shares that such holder would otherwise have been entitled to purchase, the kind and amount of shares or other securities or property that such holder would have been entitled to receive as a result of the Corporate Reorganization if, on the effective date thereof, that holder had owned all Shares that were subject to the Option. Such adjustments shall be made automatically, without the necessity of Committee action, on the customary arithmetical basis in the case of any stock split, including a stock split effected by means of a stock dividend, and in the case of any other dividend paid in Shares.

The Committee shall also make appropriate adjustments in the terms of any Awards under the Plan as are equitably necessary to reflect such Corporate Reorganization and may modify any other terms of outstanding Awards, including modifications of performance criteria and changes in the length of Performance Periods. The determination of the Committee as to the foregoing adjustments, if any, shall be conclusive and binding on Participants under the Plan, provided that any such adjustments must comply with Section 409A of the Code with respect to any U.S. Participants.

Subject to the provisions of Article 11 and any applicable law or regulatory requirement, without affecting the number of Shares reserved or available hereunder, the Committee may authorize the issuance, assumption, substitution or conversion of Awards under the Plan in connection with any Corporate Reorganization, upon such terms and conditions as it may deem appropriate. Additionally, the Committee may amend the Plan, or adopt supplements to the Plan, in such manner as it deems appropriate to provide for such issuance, assumption, substitution or conversion as provided in the previous sentence.

Notwithstanding the foregoing or anything to the contrary herein, any adjustment, other than in connection with a security consolidation or security split, to Awards granted or issued under the Plan shall be subject to the prior approval of the TSXV, including adjustments related to an amalgamation, merger, arrangement, reorganization, spin-off, dividend or recapitalization.

ARTICLE 4 ELIGIBILITY AND PARTICIPATION

4.1 Eligibility

Awards under the Plan shall be granted only to *bona fide* Employees, Non-Employee Directors, Officers, Management Company Employees and Consultants. Except as may be permitted by the policies of the TSXV, Awards may be granted only to an individual or to a corporation that is wholly owned by individuals eligible to receive such Awards pursuant to the Plan.

4.2 Actual Participation

Subject to the provisions of the Plan, the Committee may, from time to time, in its sole discretion select from among eligible Employees, Non-Employee Directors, Officers, Management Company Employees and Consultants, those to whom Awards shall be granted under the Plan, and shall determine in its discretion the nature, terms, conditions and amount of each Award, subject to the policies of the TSXV.

ARTICLE 5 STOCK OPTIONS

5.1 Grant of Options Subject to the terms and provisions of the Plan, Options may be granted to Participants in such number, and upon such terms, and at any time and from time to time as shall be determined by the Committee in its discretion.

5.2 Award Agreement Each Option grant shall be evidenced by an Award Agreement that shall specify the Option Price, the duration of the Option, the number of Shares to which the

Option pertains, the conditions, if any, upon which an Option shall become vested and exercisable, and any such other provisions as the Committee shall determine.

5.3 Option Price The Option Price for each grant of an Option under the Plan shall be determined by the Committee and shall be specified in the Award Agreement. The Option Price for an Option shall not be less than the greater of the following: (a) the FMV of the Shares on the date of grant; and (b) the Discounted Market Price (as defined by the TSXV) on the date immediately prior to the date of grant.

5.4 Vesting of Options Subject to any provisions of the Plan or the applicable Award Agreement relating to acceleration of vesting of Options, regulatory requirements and the policies of the TSXV, the Committee shall determine the vesting provisions of each grant of Options at the time. Notwithstanding the foregoing, Options granted to any Consultant or persons (in the aggregate) retained to provide Investor Relations Activities shall vest in stages over a period of not less than 12 months with no more than One Quarter (1/4) of the Options vesting in any three-month period, such that: (i) no more than 1/4 of the Options vest no sooner than three months after the Options were granted; (ii) no more than another 1/4 of the Options vest no sooner than six months after the Options were granted; (iii) no more than another 1/4 of the Options vest no sooner than nine months after the Options were granted; and (iv) the remainder of the Options vest no sooner than 12 months after the Options were granted.

5.5 Duration of Options Each Option granted to a Participant shall expire at such time as the Committee shall determine at the time of grant; provided, however, that, subject to section 5.6, no Option shall be exercisable later than the tenth (10th) anniversary date of its grant.

5.6 Blackout Periods If the date on which an Option is scheduled to expire occurs during, or within 10 business days after the last day of a Black Out Period applicable to such Participant, then the expiry date for such Option shall be extended to the earlier of: a) the last day of such 10 business day period; or the second business day following the disclosure of the corresponding Material Information.

5.7 Exercise of Options granted under this Article 5 shall be exercisable at such times and on the occurrence of such events, and be subject to such restrictions and conditions, as the Committee shall in each instance approve, which need not be the same for each grant or for each Participant. The Committee may elect to allow the exercise of Options to be completed by way of Cashless Exercise or Net Exercise.

5.8 Payment Options granted under this Article 5 shall be exercised by the delivery of a notice of exercise to the Company or an agent designated by the Company in a form specified or accepted by the Committee, or by complying with any alternative procedures which may be authorized by the Committee, setting forth the number of Shares with respect to which the Option is to be exercised, accompanied by full payment of the Option Price.

The Option Price upon exercise of any Option shall be payable to the Company in full in cash, certified cheque, bank draft or wire or electronic funds transfer or any other method to deliver readily available funds that's accepted by the Committee.

As soon as practicable after receipt of a notification of exercise and full payment of the Option Price, the Shares in respect of which the Option has been exercised shall be issued as fully-paid and non-assessable common shares of the Company. As of the business day the

Company receives such notice and such payment, the Participant (or the person claiming through a Participant, as the case may be) shall be entitled to be entered on the share register of the Company as the holder of the number of Shares in respect of which the Option was exercised and to receive as promptly as possible thereafter, but in any event, on or before the 15th day of the third month of the year following the year in which the Option was exercised, a certificate or evidence of book entry representing the said number of Shares. The Company shall cause to be delivered to or to the direction of the Participant Share certificates or evidence of book entry Shares in an appropriate amount based upon the number of Shares purchased under the Option(s).

5.9 Death, Disability, Retirement and Termination or Resignation of Employment

If the Award Agreement does not specify the effect of a termination or resignation of employment then the following default rules will apply, provided that, notwithstanding the foregoing or anything to the contrary herein, in no event can Options terminate more than one (1) year following the Termination Date:

- (a) Death: If a Participant dies while an Employee, Director of, or Consultant to, the Company or an Affiliate of the Company:
 - (i) all unvested Options as at the Termination Date shall automatically and immediately vest; and
 - (ii) all vested Options (including those that vested pursuant to (i) above) shall continue to be subject to the Plan and exercisable for a period of 90 days after the Termination Date, provided that any Options that have not been exercised within 90 days after the Termination Date shall automatically and immediately expire and be forfeited on such date.
- (b) Disability: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their Disability then all Options remain and continue to vest (and are exercisable) in accordance with the terms of the Plan for a period of 90 days after the Termination Date, provided that any Options that have not been exercised (whether vested or not) within 90 days months after the Termination Date shall automatically and immediately expire and be forfeited on such date.
- (c) Retirement: If a Participant Retires then the Committee shall have the discretion, with respect to such Participant's Options, to determine: (i) whether to accelerate vesting of any or all of such Options, (ii) whether any of such Options shall be cancelled, with or without payment, and (iii) how long, if at all, such Options may remain outstanding following the Termination Date; provided, however, that in no event shall such Options be exercisable for more than 12 months after the Termination Date.
- (d) Termination for Cause: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their termination for Cause, then all Options, whether vested or not, shall automatically and immediately be forfeited as at the Termination Date.
- (e) Termination without Cause or Voluntary Resignation: Subject to section 5.9(f) below, if a Participant ceases to be eligible to be a Participant under the Plan for

any reason, other than as set out in sections 5.9(a)-(d), then, unless otherwise determined by the Committee in its sole discretion:

- (i) all Options that are unvested as at the Termination Date shall automatically and immediately expire and be forfeited on the Termination Date, and
 - (ii) all Options that are vested as at the Termination Date shall continue to be subject to the Plan and exercisable for a period of 90 days after the Termination Date, provided that any Options that have not been exercised within 90 days after the Termination Date shall automatically and immediately expire and be forfeited on such date.
- (f) Existing Options. Notwithstanding any other provisions herein, in connection with the resignation of the Participants holding Existing Options, the Existing Options shall be exercisable for a period of 90 days after the Termination Date, provided that any Existing Options that have not been exercised within 90 days after the Termination Date shall automatically and immediately expire and be forfeited on such date.

5.10 Non transferability of Options

An Option granted under this Article 5 may not be sold, transferred, pledged, assigned, or otherwise alienated or hypothecated, other than by will or by the laws of descent and distribution. Further, all Options granted to a Participant under this Article 5 shall be exercisable during such Participant's lifetime only by such Participant.

ARTICLE 6 SHARE APPRECIATION RIGHTS

6.1 Grant of SARs Subject to any provisions of the Plan or the applicable Award Agreement, regulatory requirements and the policies of the TSXV, SARs may be granted to Participants at any time and from time to time and upon such terms as shall be determined by the Committee in its discretion.

The Grant Price for each grant of a SAR shall be determined by the Committee and shall be specified in the Award Agreement. The Grant Price may be based on one hundred percent (100%) of the FMV of the Shares on the date of grant, or set at a premium to the FMV of the Shares on the date of grant, or be indexed to the FMV of the Shares on the date of grant, with the index determined by the Committee, in its discretion, provided that the Grant Price may never be less than the FMV of the Shares on the date of Grant. The Grant Price of Tandem SARs shall be equal to the Option Price of the related Option.

6.2 SAR Agreement Each SAR Award shall be evidenced by an Award Agreement that shall specify the Grant Price, the term of the SAR, and any such other provisions as the Committee shall determine.

6.3 Term of SAR The term of a SAR granted under the Plan shall be determined by the Committee, in its sole discretion, and subject to section 6.4, no SAR shall be exercisable later than the tenth (10th) anniversary date of its grant.

6.4 Blackout Periods

If the date on which a SAR is scheduled to expire occurs during, or within 10 business days after the last day of a Black Out Period applicable to such Participant, then the expiry date for such SAR shall be extended to the earlier of: a) the last day of such 10 business day period; or the second business day following the disclosure of the corresponding Material Information

6.5 Exercise of SARs

SARs may be exercised upon whatever terms and conditions the Committee, in its sole discretion, imposes.

6.6 Payment of SAR Amount Upon the exercise of a SAR, a Participant shall be entitled to receive payment from the Company in an amount representing the difference between the FMV of the underlying Shares on the date of exercise over the Grant Price. At the discretion of the Committee, the payment upon SAR exercise may be in cash, Shares of equivalent value (based on the FMV of the Shares on the date of exercise of the SAR, as defined in the Award Agreement or otherwise defined by the Committee thereafter), or in some combination thereof. Payment shall be made no earlier than the date of exercise nor later than 2½ months after the close of the year in which the SAR is exercised. The Committee's determination regarding the form of SAR payout shall be set forth or reserved for later determination in the Award Agreement for the grant of the SAR.

6.7 Termination of Employment Subject to this section 6.7, each Award Agreement shall set forth the extent to which the Participant shall have the right to exercise the SAR following the Termination Date, provided that, notwithstanding the foregoing or anything to the contrary herein, in no event can SARs terminate more than one (1) year following the Termination Date. Such provisions shall be determined in the sole discretion of the Committee, need not be uniform among all SARs issued pursuant to the Plan, and may reflect distinctions based on the reasons for termination, provided that such provisions shall comply with the policies of the TSXV. If the Award Agreement does not specify the effect of a termination or resignation of employment then the following default rules will apply:

- (a) Death: If a Participant dies while an Employee, Director of, or Consultant to, the Company or an Affiliate of the Company:
 - (i) all SARs that are unvested as at the Termination Date shall automatically and immediately vest on the Termination Date; and
 - (ii) all SARs that are vested as at the Termination Date (including those that vested pursuant to (i) above) shall be paid to the Participant's estate in accordance with the terms of the Plan and the Award Agreement

provided that, for the avoidance of doubt, the entitlement to make a claim following the death of a Participant will not exceed 12 months from the date of the death of the Participant.

- (b) Disability: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their Disability, then all SARs remain and continue to vest in accordance with the terms of the Plan for a period of 90 days after the Termination Date, provided that any SARs that have not vested within 90 days after the

Termination Date shall automatically and immediately expire and be forfeited on such date.

- (c) Retirement: If a Participant Retires then the Committee shall have the discretion, with respect to such Participant's SARs, to determine: (i) whether to accelerate vesting of any or all of such SARs, (ii) whether any of such SARs shall be cancelled, with or without payment, and (iii) how long, if at all, such SARs may remain outstanding following the Termination Date; provided, however, that in no event shall such SARs remain outstanding for more than 12 months after the Termination Date and in no event shall the SARs vest prior to the 12 month anniversary of the date of grant. Notwithstanding the above, for U.S. Participants, the treatment of SARs upon Retirement shall be provided for in the Award Agreement.
- (d) Termination for Cause: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their termination for Cause, then all SARs, whether vested or not, shall automatically and immediately be forfeited as at the Termination Date.
- (e) Termination without Cause or Voluntary Resignation: If a Participant ceases to be eligible to be a Participant under the Plan for any reason, other than as set out in sections 6.7(a)-(d), then, unless otherwise determined by the Committee in its sole discretion:
 - (i) all SARs that are unvested as at the Termination Date shall automatically and immediately be forfeited on the Termination Date, and
 - (ii) all SARs that are vested as at the Termination Date shall be paid to the Participants in accordance with the terms of the Plan and the Award Agreement.

6.8 Non transferability of SARs

A SAR granted under the Plan may not be sold, transferred, pledged, assigned or otherwise alienated or hypothecated, other than by will or by the laws of descent and distribution. Further, all SARs granted to a Participant under the Plan shall be exercisable during such Participant's lifetime only by such Participant.

ARTICLE 7 RESTRICTED SHARE UNITS

7.1 Grant of Restricted Share Units Subject to any provisions of the Plan or the applicable Award Agreement, regulatory requirements and the policies of the TSXV, the Committee, at any time and from time to time, may grant Restricted Share Units to Participants in such amounts and upon such terms as the Committee shall determine.

7.2 Restricted Share Unit Agreement Each Restricted Share Unit grant shall be evidenced by an Award Agreement that shall specify the Period(s) of Restriction, the number of Restricted Share Units granted, the settlement date for Restricted Share Units, whether such Restricted Share Unit is settled in cash, Shares or a combination thereof or if the form of payment is reserved for later determination by the Committee, and any such other provisions as the

Committee shall determine, provided that unless otherwise determined by the Committee or as set out in any Award Agreement, no Restricted Share Unit shall vest later than December 31st of the third calendar year following the date of grant. The Committee shall impose, in the Award Agreement at the time of grant, such other conditions and/or restrictions on any Restricted Share Units granted pursuant to the Plan as it may deem advisable, including, without limitation, restrictions based upon the achievement of specific performance criteria, time-based restrictions on vesting following the attainment of the performance criteria, time-based restrictions, restrictions under applicable laws or under the requirements of the TSXV.

7.3 Vesting of Restricted Share Units Subject to any provisions of the Plan or the applicable Award Agreement relating to acceleration of vesting of Restricted Share Units, regulatory requirements or policies of the TSXV, and provided that no Restricted Share Unit granted shall vest and be payable after December 31 of the third calendar year following the year of service for which the Restricted Share Unit was granted or before the one-year anniversary of the date of the grant of the Restricted Share Unit, the Committee may authorize any one or more vesting dates of any grant of Restricted Share Units.

7.4 Black Out Periods If the date on which a Restricted Share Unit is scheduled to expire occurs during, or within 10 business days after the last day of a Black Out Period applicable to such Participant, then the expiry date for such Award shall be extended to the last day of such 10 business day period.

7.5 Non transferability of Restricted Share Units

The Restricted Share Units granted herein may not be sold, transferred, pledged, assigned or otherwise alienated or hypothecated. All rights with respect to the Restricted Share Units granted to a Participant under the Plan shall be available during such Participant's lifetime only to such Participant.

7.6 Dividends and Other Distributions During the Period of Restriction, Participants holding Restricted Share Units granted hereunder may, if the Committee so determines, be credited with dividends paid with respect to the underlying Shares or Dividend Equivalents while they are so held in a manner determined by the Committee in its sole discretion. Dividend Equivalents shall not apply to an Award unless specifically provided for in the Award Agreement. The Committee may apply any restrictions to the dividends or Dividend Equivalents that the Committee deems appropriate. The Committee, in its sole discretion, may determine the form of payment of dividends or Dividend Equivalents, including cash, Shares or Restricted Share Units, provided that, in no event shall the settlement of Dividend Equivalents cause the maximum number of Shares issuable under Article e (as applicable) to be exceeded. The number of additional Shares to be issued pursuant to this section shall be included in the maximum number of Shares issuable under Article 3 (as applicable).

7.7 Death, Disability, Retirement and Termination or Resignation of Employment If the Award Agreement does not specify the effect of a termination or resignation of employment then the following default rules will apply, provided that, notwithstanding the foregoing or anything to the contrary herein, in no event can Restricted Share Units terminate more than one (1) year following the Termination Date:

- (a) Death: If a Participant dies while an Employee, Director of, or Consultant to, the Company or an Affiliate of the Company:

- (i) all Restricted Share Units that are unvested as at the Termination Date shall automatically and immediately vest on the Termination Date; and
- (ii) all Restricted Share Units that are vested as at the Termination Date (including those that vested pursuant to (i) above) shall be paid to the Participant's estate in accordance with the terms of the Plan and the Award Agreement

provided that, for the avoidance of doubt, the entitlement to make a claim following the death of a Participant will not exceed 12 months from the date of the death of the Participant.

- (b) Disability: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their Disability, then all Restricted Share Units remain and continue to vest in accordance with the terms of the Plan for a period of 90 days after the Termination Date, provided that any Restricted Share Units that have not vested within 90 days after the Termination Date shall automatically and immediately expire and be forfeited on such date.
- (c) Retirement: If a Participant Retires then the Committee shall have the discretion, with respect to such Participant's Restricted Share Units, to determine: (i) whether to accelerate vesting of any or all of such Restricted Share Units, (ii) whether any of such Restricted Share Units shall be cancelled, with or without payment, and (iii) how long, if at all, such Restricted Share Units may remain outstanding following the Termination Date; provided, however, that in no event shall such Restricted Share Units remain outstanding for more than 12 months after the Termination Date and in no event shall the Restricted Share Units vest prior to the 12 month anniversary of the date of grant. Notwithstanding the above, for U.S. Participants, the treatment of Restricted Share Units upon Retirement shall be provided for in the Award Agreement.
- (d) Termination for Cause: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their termination for Cause, then all Restricted Share Units, whether vested or not, shall automatically and immediately be forfeited as at the Termination Date.
- (e) Termination without Cause or Voluntary Resignation: If a Participant ceases to be eligible to be a Participant under the Plan for any reason, other than as set out in sections 7.7(a)-(d), then, unless otherwise determined by the Committee in its sole discretion,:
 - (i) all Restricted Share Units that are unvested as at the Termination Date shall automatically and immediately be forfeited on the Termination Date, and
 - (ii) all Restricted Share Units that are vested as at the Termination Date shall be paid to the Participants in accordance with the terms of the Plan and the Award Agreement.

7.8 Payment in Settlement of Restricted Share Units. When and if Restricted Share Units become payable, the Participant issued such Restricted Share Units shall be entitled to

receive payment from the Company in settlement of such Restricted Share Units: (i) in cash, in an amount equal to the product of the FMV of a Share on the applicable settlement date multiplied by the number of Restricted Share Units being settled, (ii) in a number of Shares (issued from treasury) equal to the number of Restricted Share Units being settled, or (iii) in some combination thereof. The Committee's determination regarding the form of payout shall be set forth or reserved for later determination in the Award Agreement for the grant of the Restricted Share Units. In the event settlement is made by payment in cash, such payment shall be made by the earlier of (i) 2½ months after the close of the year in which such conditions or restrictions were satisfied or lapsed and (ii) December 31 of the third year following the year of the grant date.

ARTICLE 8 DEFERRED SHARES UNITS

8.1 Grant of Deferred Share Units Subject to any provisions of the Plan or the applicable Award Agreement, regulatory requirements and the policies of the TSXV, the Committee, at any time and from time to time, may grant Deferred Share Units to Participants in such amounts and upon such terms as the Committee shall determine.

8.2 Deferred Share Unit Agreement Each Deferred Share Unit grant shall be evidenced by an Award Agreement that shall specify the number of Deferred Share Units granted, the settlement date for Deferred Share Units, and any other provisions as the Committee shall determine, including, but not limited to a requirement that Participants pay a stipulated purchase price for each Deferred Share Unit, restrictions based upon the achievement of specific performance criteria, time-based restrictions, restrictions under applicable laws or under the requirements of the TSXV, or holding requirements or sale restrictions placed on the Shares by the Company upon vesting of such Deferred Share Unit.

8.3 Non transferability of Deferred Share Units

The Deferred Share Units granted herein may not be sold, transferred, pledged, assigned or otherwise alienated or hypothecated. All rights with respect to the Deferred Share Units granted to a Participant under the Plan shall be available during such Participant's lifetime only to such Participant.

8.4 Black Out Periods If the date on which a Deferred Share Unit is scheduled to expire occurs during, or within 10 business days after the last day of a Black Out Period applicable to such Participant, then the expiry date for such Award shall be extended to the last day of such 10 business day period.

8.5 Dividends and Other Distributions Participants holding Deferred Share Units granted hereunder may, if the Committee so determines, be credited with dividends paid with respect to the underlying Shares or Dividend Equivalents while they are so held in a manner determined by the Committee in its sole discretion. Dividend Equivalents shall not apply to an Award unless specifically provided for in the Award Agreement. The Committee may apply any restrictions to the dividends or Dividend Equivalents that the Committee deems appropriate. The Committee, in its sole discretion, may determine the form of payment of dividends or Dividend Equivalents, including cash, Shares or Deferred Share Units, provided that, in no event shall the settlement of Dividend Equivalents cause the maximum number of Shares issuable under Article e (as applicable) to be exceeded. The number of additional Shares to be issued pursuant to this section shall be included in the maximum number of Shares issuable under Article 3 (as applicable).

8.6 Vesting, Termination of Employment, Consultancy or Directorship Subject to any provisions of the Plan or the applicable Award Agreement, regulatory requirements, or the policies of the TSXV, Deferred Share Units shall vest on the Termination Date if the Participant has died or in the event of a Change of Control, or in any other case, the date that is the later of the Termination Date, and the date that is the one-year anniversary of the date of the grant of the Deferred Share Unit. Subject to this section 8.6, each Award Agreement shall set forth the extent to which the Participant shall have the right to retain Deferred Share Units following the Termination Date. Such provisions shall be determined in the sole discretion of the Committee, need not be uniform among all Deferred Share Units issued pursuant to the Plan, and may reflect distinctions based on the reasons for termination, provided that provisions shall comply with applicable policies of the TSXV. If the Award Agreement does not specify the effect of a termination or resignation of employment then the following default rules will apply, provided that, notwithstanding the foregoing or anything to the contrary herein, in no event can Deferred Share Units terminate more than one (1) year following the Termination Date:

- (a) Death: If a Participant dies while an Employee, Director of, or Consultant to, the Company or an Affiliate of the Company:
 - (i) all Deferred Share Units that are unvested as at the Termination Date shall automatically and immediately vest on the Termination Date; and
 - (ii) all Deferred Share Units that are vested as at the Termination Date (including those that vested pursuant to (i) above) shall be paid to the Participant's estate in accordance with the terms of the Plan and the Award Agreement

provided that, for the avoidance of doubt, the entitlement to make a claim following the death of a Participant will not exceed 12 months from the date of the death of the Participant.

- (b) Disability: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their Disability, then all Deferred Share Units remain and continue to vest in accordance with the terms of the Plan for a period of 90 days after the Termination Date, provided that any Deferred Share Units that have not vested within 90 days after the Termination Date shall automatically and immediately expire and be forfeited on such date.
- (c) Retirement: If a Participant Retires, all Deferred Share Units that are unvested as at the Termination Date shall automatically and immediately vest on the Termination Date but in no event shall the Deferred Share Units vest prior to the 12 month anniversary of the date of grant. Notwithstanding the above, for U.S. Participants, the treatment of Deferred Share Units upon retirement shall be provided for in the Award Agreement.
- (d) Termination for Cause: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their termination for Cause, then all Deferred Share Units, whether vested or not, shall automatically and immediately be forfeited as at the Termination Date.
- (e) Termination without Cause or Voluntary Resignation: If a Participant ceases to be eligible to be a Participant under the Plan for any reason, other than as set out in

sections 0(a)-(d), then, unless otherwise determined by the Committee in its sole discretion,:

- (i) all Deferred Share Units that are unvested as at the Termination Date shall automatically and immediately be forfeited on the Termination Date, and
- (ii) all Deferred Share Units, if any, that are vested as at the Termination Date, shall be paid to the Participants in accordance with the terms of the Plan and the Award Agreement.

8.7 Payment in Settlement of Deferred Share Units When and if Deferred Share Units become payable, the Participant issued such Deferred Share Units shall be entitled to receive payment from the Company in settlement of such Deferred Share Units: (i) in cash, in an amount equal to the product of the FMV of a Share on the applicable settlement date less the stipulated purchase price for the Deferred Share Units being settled, if any, multiplied by the number of Deferred Share Units being settled, (ii) in a number of Shares (issued from treasury) equal to the number of Deferred Share Units being settled, or (iii) in some combination thereof. The Committee's determination regarding the form of payout shall be set forth or reserved for later determination in the Award Agreement for the grant of the Deferred Share Units.

ARTICLE 9 PERFORMANCE SHARE UNITS

9.1 Grant of Performance Share Units Subject to the terms and conditions of the Plan, the Committee, at any time and from time to time, may grant Performance Share Units to Participants in such amounts and upon such terms as the Committee shall determine.

9.2 Value of Performance Share Units Each Performance Share Unit shall have an initial value equal to the FMV of a Share on the date of grant. The Committee shall set performance criteria for a Performance Period in its discretion, which, depending on the extent to which they are met, will determine, in the manner determined by the Committee and set forth in the Award Agreement, the value and/or number of each Performance Share Unit that will be paid to the Participant.

9.3 Vesting and Earning of Performance Share Units Subject to the terms of the Plan and the applicable Award Agreement, after the later of the date upon which the applicable Performance Period has ended and the date that is the one-year anniversary of the date the Performance Share Units were granted, the holder of Performance Share Units shall be entitled to receive payout in accordance with section 9.4 on the value and number of Performance Share Units, determined as a function of the extent to which the corresponding performance criteria have been achieved. Notwithstanding the foregoing, the Company shall have the ability to require the Participant to hold any Shares received pursuant to such Award for a specified period of time. For the avoidance of doubt, in no event shall the Performance Share Units vest prior to the 12 month anniversary of the date of grant, subject to acceleration in the event that a Participant dies or is no longer an eligible Participant in connection with a Change of Control, take-over bid, reverse takeover, or similar transaction.

9.4 Form and Timing of Payment of Performance Share Units Payment of earned Performance Share Units shall be as determined by the Committee and as set forth in the Award Agreement. Subject to the terms of the Plan, the Committee, in its sole discretion, may pay

earned Performance Share Units in the form of: (i) cash equal to the value of the earned Performance Share Units at the end of the applicable Performance Period, (ii) a number of Shares issued from treasury equal to the number of earned Performance Share Units at the end of the applicable Performance Period, or (iii) in a combination thereof in the discretion of the Company. Any Shares may be granted subject to any restrictions deemed appropriate by the Committee. The determination of the Committee with respect to the form of payout of such Awards shall be set forth in the Award Agreement for the grant of the Award or reserved for later determination. In no event will delivery of such Shares or payment of any cash amounts be made later than the earlier of (i) 2½ months after the close of the year in which such conditions or restrictions were satisfied or lapsed and (ii) December 31 of the third year following the year of the grant date.

9.5 Dividends and Other Distributions Participants holding Performance Share Units granted hereunder may, if the Committee so determines, be credited with dividends paid with respect to the underlying Shares or Dividend Equivalents while they are so held in a manner determined by the Committee in its sole discretion. Dividend Equivalents shall not apply to an Award unless specifically provided for in the Award Agreement. The Committee may apply any restrictions to the dividends or Dividend Equivalents that the Committee deems appropriate. The Committee, in its sole discretion, may determine the form of payment of dividends or Dividend Equivalents, including cash, Shares or Performance Share Units, , provided that, in no event shall the settlement of Dividend Equivalents cause the maximum number of Shares issuable under Article e (as applicable) to be exceeded. The number of additional Shares to be issued pursuant to this section shall be included in the maximum number of Shares issuable under Article 3 (as applicable).

9.6 Termination of Employment, Consultancy or Directorship Subject to this section 9.6, each Award Agreement shall set forth the extent to which the Participant shall have the right to retain Performance Share Units following the Termination Date. Such provisions shall be determined in the sole discretion of the Committee, need not be uniform among all Performance Share Units issued pursuant to the Plan, and may reflect distinctions based on the reasons for termination, provided that the provisions shall comply with applicable policies of the TSXV. If the Award Agreement does not specify the effect of a termination or resignation of employment then the following default rules will apply, provided that, notwithstanding the foregoing or anything to the contrary herein, in no event can Performance Share Units terminate more than one (1) year following the Termination Date:

- (a) Death: If a Participant dies while an Employee, Director of, or Consultant to, the Company or an Affiliate of the Company:
 - (i) all Performance Share Units that are unvested as at the Termination Date shall vest pro rata on the Termination Date, taking into account the period that has elapsed between the date of grant of such Performance Share Units and the Termination Date, provided the performance vesting conditions set out in the Award Agreement have been satisfied throughout such period, and where such conditions have not been satisfied, such unvested Performance Units or portion thereof shall automatically and immediately expire and be forfeited on the Termination Date; and
 - (ii) all Performance Share Units that are vested as at the Termination Date (including those that vested pursuant to (i) above) shall be paid to the

Participant's estate in accordance with the terms of the Plan and the Award Agreement

provided that, for the avoidance of doubt, the entitlement to make a claim following the death of a Participant will not exceed 12 months from the date of the death of the Participant.

- (b) Disability: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their Disability, then all Performance Share Units remain and continue to vest in accordance with the terms of the Plan for a period of 90 days after the Termination Date, provided that any Performance Share Units that have not vested within 90 days after the Termination Date shall automatically and immediately expire and be forfeited on such date.
- (c) Retirement: If a Participant Retires then the Committee shall have the discretion, with respect to such Participant's Performance Share Units, to determine: (i) whether to accelerate vesting of any or all of such Performance Share Units, (ii) whether any of such Performance Share Units shall be cancelled, with or without payment, and (iii) how long, if at all, such Performance Share Units may remain outstanding following the Termination Date; provided, however, that in no event shall such Performance Share Units remain outstanding for more than 12 months after the Termination Date and in no event shall the Performance Share Units vest prior to the 12 month anniversary of the date of grant. Notwithstanding the above, for U.S. Participants, the treatment of Performance Share Units upon retirement shall be provided for in the Award Agreement.
- (d) Termination for Cause: If a Participant ceases to be eligible to be a Participant under the Plan as a result of their termination for Cause, then all Performance Share Units, whether vested or not, shall automatically and immediately be forfeited as at the Termination Date.
- (e) Termination without Cause or Voluntary Resignation: If a Participant ceases to be eligible to be a Participant under the Plan for any reason, other than as set out in sections 9.6 (a)-(d), then, unless otherwise determined by the Committee in its sole discretion,:
 - (i) all Performance Share Units that are unvested as at the Termination Date shall automatically and immediately be forfeited on the Termination Date, and
 - (ii) all Performance Share Units that are vested as of the Termination Date shall be paid to the Participants in accordance with the terms of the Plan and the Award Agreement.

9.7 Non-transferability of Performance Share Units Performance Share Units may not be sold, transferred, pledged, assigned or otherwise alienated or hypothecated, other than by will or by the laws of descent and distribution. Further, a Participant's rights under the Plan shall inure during such Participant's lifetime only to such Participant.

ARTICLE 10 BENEFICIARY DESIGNATION

10.1 Beneficiary A Participant's "beneficiary" is the person or persons entitled to receive payments or other benefits or exercise rights that are available under the Plan in the event of the Participant's death. A Participant may designate a beneficiary or change a previous beneficiary designation at such times as prescribed by the Committee and by using such forms and following such procedures approved or accepted by the Committee for that purpose. If no beneficiary designated by the Participant is eligible to receive payments or other benefits or exercise rights that are available under the Plan at the Participant's death, the beneficiary shall be the Participant's estate.

10.2 Discretion of the Committee Notwithstanding the provisions above, the Committee may, in its discretion, after notifying the affected Participants, modify the foregoing requirements, institute additional requirements for beneficiary designations, or suspend the existing beneficiary designations of living Participants or the process of determining beneficiaries under this Article 10, or both, in favor of another method of determining beneficiaries.

ARTICLE 11 RIGHTS OF PERSONS ELIGIBLE TO PARTICIPATE

11.1 Employment Nothing in the Plan or an Award Agreement shall interfere with or limit in any way the right of the Company or an Affiliate of the Company to terminate any Participant's employment, consulting or other service relationship with the Company or the Affiliate at any time, nor confer upon any Participant any right to continue in the capacity in which the Participant is employed or otherwise serves the Company or the Affiliate.

Neither an Award nor any benefits arising under the Plan shall constitute part of an employment or service contract with the Company or an Affiliate of the Company, and, accordingly, subject to the terms of the Plan, the Plan may be terminated or modified at any time in the sole and exclusive discretion of the Committee without giving rise to liability on the part of the Company or its Affiliates for severance payments or otherwise, except as provided in the Plan.

For purposes of the Plan, unless otherwise provided by the Committee, a transfer of employment of a Participant between the Company and an Affiliate of the Company or among Affiliates of the Company, shall not be deemed a termination of employment. The Committee may provide, in a Participant's Award Agreement or otherwise, the conditions under which a transfer of employment to an entity that is spun off from the Company or an Affiliate of the Company shall not be deemed a termination of employment for purposes of an Award.

By participating in this Plan and accepting any Awards hereunder, the Participant acknowledges and agrees that the Participant shall have no entitlement to damages, or other compensation arising from, that would have accrued to the Participant after the Participant's Termination Date. For clarity, except for the minimum period of notice of termination required to be provided pursuant to Employment Standards Legislation (if any and if applicable), no period of common law reasonable notice shall be used for purposes of calculating a Participant's entitlements under the Plan, or any agreement entered into in connection with same. The Participant waives the right to receive damages or payment in lieu of any forfeited remuneration or grant under the Plan, or any agreement entered into in connection with same, that would have accrued or been provided during any common law reasonable notice period that exceeds

Participant's minimum statutory notice of termination period under the Employment Standards Legislation (if any and if applicable).

11.2 Participation No Employee or other Person eligible to participate in the Plan shall have the right to be selected to receive an Award. No person selected to receive an Award shall have the right to be selected to receive a future Award, or, if selected to receive a future Award, the right to receive such future Award on terms and conditions identical or in proportion in any way to any prior Award.

11.3 Rights as a Shareholder A Participant shall have none of the rights of a shareholder with respect to Shares covered by any Award until the Participant becomes the holder of such Shares.

ARTICLE 12 CHANGE OF CONTROL

12.1 Change of Control and Termination of Employment Subject to section 12.2, if there is a Change of Control, any Awards held by a Participant shall automatically vest following such Change of Control, on the Termination Date, if the Participant is an Employee, officer or a Director and:

- (i) their employment, or officer or Director position is terminated by the Company or an Affiliate of the Company (except for a termination with Cause) within 12 months following the Change of Control; or
- (ii) they Voluntarily Resign or Retire for Good Reason within 12 months following the Change of Control,

provided that no acceleration of Awards shall occur in the case of a Participant that was retained to provide Investor Relations Activities unless the approval of the TSXV is either obtained or not required.

12.2 Discretion to Board Notwithstanding any other provision of the Plan, in the event of an actual or potential Change of Control, the Committee may, in its sole discretion, without the necessity or requirement for the agreement of any Participant, subject to applicable laws and the policies of the TSXV: (i) accelerate, conditionally or otherwise, on such terms as it sees fit (including, but not limited to those set out in (iii) and (iv) below), the vesting date of any Awards; (ii) permit the conditional redemption or exercise of any Awards, on such terms as it sees fit; (iii) otherwise amend or modify the terms of any Awards, including for greater certainty by (1) permitting Participants to exercise or redeem any Awards to assist the Participants to participate in the actual or potential Change of Control, or (2) providing that any Awards exercised or exercised shall be exercisable or redeemed for, in lieu of Shares, such property (including shares of another entity or cash) that shareholders of the Company will receive in the Change of Control; and (iv) terminate, following the successful completion of a Change of Control, on such terms as it sees fit, the Awards not exercised or redeemed prior to the successful completion of such Change of Control. With respect to U.S. Participant, the treatment of Awards upon a Change of Control shall be provided for in the Award Agreement.

12.3 Non-Occurrence of Change of Control In the event that any Awards are conditionally exercised pursuant to section 12.2 above and the Change of Control does not occur, the Committee may, in its sole discretion, determine that any (i) Awards so exercised shall be

reinstated as the type of Award prior to such exercise, and (ii) Shares issued be cancelled and any exercise or similar price received by the Company shall be returned to the Participant.

12.4 Agreement with Purchaser in a Change of Control In connection with a Change of Control, the Committee may be permitted to condition any acceleration of vesting on the Participant entering into an employment, confidentiality or other agreement with the purchaser as the Committee deems appropriate.

ARTICLE 13 AMENDMENT AND TERMINATION

13.1 Amendment and Termination The Board at any time, and from time to time, may amend or suspend any provision of an Award or the Plan, or terminate the Plan, subject to those provisions of a regulatory body (including, without limitation, the rules, regulations and policies of the TSXV), if any, that require the approval of security holders or any governmental or regulatory body regardless of whether any such amendment or suspension is material, fundamental or otherwise, and notwithstanding any rule of common law or equity to the contrary.

Without limiting the generality of the foregoing, the Board may make the following types of amendments to this Plan or any Awards without seeking security holder approval:

- (i) amendments of a "housekeeping" or administrative nature, including any amendment for the purpose of curing any ambiguity, error or omission in this Plan, or to correct or supplement any provision of this Plan that is inconsistent with any other provision of this Plan;
- (ii) amendments necessary to comply with the provisions of applicable law (including, without limitation, the rules, regulations and policies of the TSXV); and
- (iii) amendments necessary to suspend or terminate this Plan.

No such amendment of the Plan or Award Agreement may be made if such amendment would materially and adversely impair any rights arising from any Awards previously granted to a Participant under the Plan without the consent of the Participant or the representatives of the Participant's estate, as applicable. Any amendment that would cause an Award held by a Participant that is a U.S. taxpayer to fail to comply with Section 409A of the Code shall be null and void with respect to such Participant. No amendment to the Plan shall be made which would cause the Plan, in respect of any Awards, to cease to be a plan described in regulation 6801(d) of the Income Tax Act (Canada) or any successor to such provision.

13.2 Amendments Requiring Shareholder Approval Disinterested shareholder approval shall be obtained for the following types of amendments:

- (i) any reduction in the Option Price of an Option or the Grant Price of a SAR if the Participant is an Insider of the Company at the time of the proposed amendment;
- (ii) any amendment to increase the maximum number of Shares issuable under this Plan, other than as set out herein;
- (iii) any amendment to remove or to exceed the Insider participation limit set out in Section 3.2(c);

- (iv) any amendment extending the term of an Option beyond the original Expiry Date other than as set out herein;
- (v) any amendment to the amendment provisions;
- (vi) any amendment that would allow for the transfer or assignment of Awards under this Plan, other than for normal estate settlement purposes; and
- (vii) amendments required to be approved by security holders under applicable law (including the rules, regulations and policies of the TSXV).

ARTICLE 14 WITHHOLDING

14.1 Withholding The Company or any of its Affiliates shall have the power and the right to deduct or withhold, or require a Participant to remit to the Company or the Affiliate, an amount sufficient to satisfy federal, provincial and local taxes or domestic or foreign taxes required by law or regulation to be withheld with respect to any taxable event arising from or as a result of the Plan or any Award hereunder. The Committee may provide for Participants to satisfy withholding requirements by having the Company withhold and sell Shares or the Participant making such other arrangements, including the sale of Shares, in either case on such conditions as the Committee specifies, including for example by way of Cashless Exercise or Net Exercise.

14.2 Acknowledgement Participant acknowledges and agrees that the ultimate liability for all taxes legally payable by Participant is and remains Participant's responsibility and may exceed the amount actually withheld by the Company. Participant further acknowledges that the Company: (a) makes no representations or undertakings regarding the treatment of any taxes in connection with any aspect of the Plan; and (b) does not commit to and is under no obligation to structure the terms of the Plan to reduce or eliminate Participant's liability for taxes or achieve any particular tax result. Further, if Participant has become subject to tax in more than one jurisdiction, Participant acknowledges that the Company may be required to withhold or account for taxes in more than one jurisdiction.

ARTICLE 15 SUCCESSORS

Any obligations of the Company or its Affiliates under the Plan with respect to Awards granted hereunder shall be binding on any successor to the Company or its Affiliates, respectively, whether the existence of such successor is the result of a direct or indirect purchase, merger, consolidation or otherwise, of all or substantially all of the businesses and/or assets of the Company or the Affiliate, as applicable.

ARTICLE 16 GENERAL PROVISIONS

16.1 Delivery of Title The Company shall have no obligation to issue or deliver evidence of title for Shares issued under the Plan prior to:

- (a) Obtaining any approvals from governmental agencies that the Company determines are necessary or advisable; and

- (b) Completion of any registration or other qualification of the Shares under any applicable law or ruling of any governmental body that the Company determines to be necessary or advisable.

16.2 Investment Representations The Committee may require each Participant receiving Shares pursuant to an Award under the Plan to represent and warrant in writing that the Participant is acquiring the Shares for investment and without any present intention to sell or distribute such Shares.

16.3 Uncertificated Shares To the extent that the Plan provides for issuance of certificates to reflect the transfer of Shares, the transfer of such Shares may be effected on a noncertificated basis to the extent not prohibited by applicable law or the policies of the TSXV.

16.4 No Fractional Shares No fractional Shares shall be issued or delivered pursuant to the Plan or any Award Agreement. In such an instance, unless the Committee determines otherwise, fractional Shares and any rights thereto shall be forfeited or otherwise eliminated.

16.5 Other Compensation and Benefit Plans No Value. Nothing in the Plan shall be construed to limit the right of the Company or an Affiliate of the Company to establish other compensation or benefit plans, programs, policies or arrangements. Except as may be otherwise specifically stated in any other benefit plan, policy, program or arrangement, no Award shall be treated as compensation for purposes of calculating a Participant's rights under any such other plan, policy, program or arrangement. No value shall be attributed to any Award, or any potential grant of any Award, as part of any calculation of a Participant's applicable notice of termination, severance or termination pay, compensation or indemnity in lieu of notice, wrongful or constructive dismissal damages, or damages for the failure to provide reasonable notice, or any claim whatsoever by the Participant to any of the foregoing (whether express or implied and whether arising under contract or statute or otherwise at law in any manner).

16.6 No Constraint on Corporate Action Nothing in the Plan shall be construed (i) to limit, impair or otherwise affect the Company's or its Affiliates' right or power to make adjustments, reclassifications, reorganizations or changes in its capital or business structure, or to merge or consolidate, or dissolve, liquidate, sell or transfer all or any part of its business or assets, or (ii) to limit the right or power of the Company or its Affiliates to take any action which such entity deems to be necessary or appropriate.

16.7 Compliance with Canadian Securities Laws All Awards and the issuance of Shares underlying such Awards issued pursuant to the Plan will be issued pursuant to an exemption from the prospectus requirements of Canadian securities laws where applicable.

16.8 Compliance with U.S. Securities Laws All Awards and the issuance of Shares underlying such Awards issued pursuant to the Plan will be issued pursuant to the registration requirements of the U.S. Securities Act of 1933, as amended or an exemption from such registration requirements. If the Awards or Shares are not so registered and no such registration exemption is available, the Company shall not be required to issue any Shares otherwise issuable hereunder.

ARTICLE 17 LEGAL CONSTRUCTION

17.1 Number Except where otherwise indicated by the context, the plural shall include the singular, and the singular shall include the plural.

17.2 Severability In the event any provision of the Plan shall be held illegal or invalid for any reason, the illegality or invalidity shall not affect the remaining parts of the Plan, and the Plan shall be construed and enforced as if the illegal or invalid provision had not been included.

17.3 Requirements of Law The granting of Awards and the issuance of Shares under the Plan shall be subject to all applicable laws, rules and regulations, and to such approvals by any governmental agencies or securities exchanges as may be required. The Company or an Affiliate of the Company shall receive the consideration required by law for the issuance of Awards under the Plan.

The inability of the Company or an Affiliate of the Company to obtain authority from any regulatory body having jurisdiction, which authority is deemed by the Company or the Affiliate to be necessary for the lawful issuance and sale of any Shares hereunder, shall relieve the Company or the Affiliate of any liability in respect of the failure to issue or sell such Shares as to which such requisite authority shall not have been obtained.

17.4 Governing Law The Plan and each Award Agreement shall be governed by the laws of the Province of Ontario excluding any conflicts or choice of law rule or principle that might otherwise refer construction or interpretation of the Plan to the substantive law of another jurisdiction.

17.5 Compliance with Section 409A of the Code

- (a) To the extent the Plan is applicable to a particular Participant subject to the Code, it is intended that the Plan and any Awards made hereunder shall not provide for the payment of “deferred compensation” within the meaning of Section 409A of the Code or shall be structured in a manner and have such terms and conditions that would not cause such a Participant to be subject to taxes and interest pursuant to Section 409A of the Code. The Plan and any Awards made hereunder shall be administrated and interpreted in a manner consistent with this intent.
- (b) To the extent that any amount or benefit in favour of a Participant who is subject to the Code would constitute “deferred compensation” for purposes of Section 409A of the Code would otherwise be payable or distributable under the Plan or any Award Agreement by reason of the occurrence of a Change of Control or the Participant’s disability or separation from service, such amount or benefit will not be payable or distributable to the Participant by reason of such circumstance unless: (i) the circumstances giving rise to such Change of Control, disability or separation from service meet the description or definition of “change in control event,” “disability,” or “separation from service,” as the case may be, in Section 409A of the Code and applicable proposed or final Treasury regulations thereunder, and (ii) the payment or distribution of such amount or benefit would otherwise comply with Section 409A of the Code and not subject the Participant to taxes and interest pursuant to Section 409A of the Code. This provision does not

prohibit the vesting of any Award or the vesting of any right to eventual payment or distribution of any amount or benefit under the Plan or any Award Agreement.

- (c) The Committee shall use its reasonable discretion to determine the extent to which the provisions of this section 17.5 will apply to a Participant who is subject to taxation under the ITA.

17.6 Priority of Agreements. In the event of any inconsistency or conflict between the provisions of the Plan and any Award Agreement, the provisions of the Plan shall prevail.

17.7 Effective Date of Plan. The Plan shall become effective as of the Effective Date, but no Award shall be exercised, and no Shares from an Award shall be issued unless and until the disinterested shareholder approval has been obtained in accordance with the policies of the TSXV, which approval shall be within six (6) months before or after the date the Plan is adopted by the Board. This Plan applies to Awards granted hereunder on and after the Effective Date.